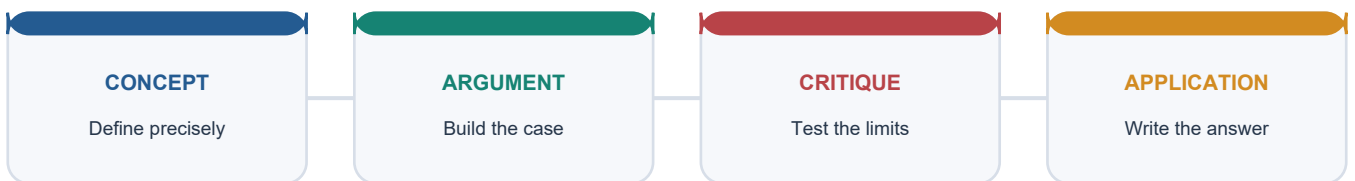


COMPLETE LEARNING SESSION

Union and Territory - Complete Learning Session

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Union and Territory - Complete Learning Session

Scope: Articles 1-4, the territory of India, admission/establishment, State reorganisation, territorial case law and analytical territorial federalism. Topic 25 retains detailed Union Territory administration; Topic 12 retains full federalism doctrine.

SOURCE, STATUS AND NON-FABRICATION CONTROL

- **Canonical sequence used:** basic\Union-and-Territory.md -> advanced\05_Union-and-Territory.md -> 05_Union-and-Territory_Complete-Topic-Package.md -> syllabus/audit/PYQ ledgers -> OCR-searchable local polity books -> Constitution, India Code and Supreme Court material.
- **Local OCR checks:** books\Indian Polity by M Laxmikant.pdf (chapter from PDF p. 111) and books\Courseware on Indian Polity by M Laxmikanth.pdf (chapter from PDF p. 119).
- **Official current control, checked 7 September 2026:** the Constitution dated 1 May 2026 and operative reorganisation law support **28 States and 8 Union Territories**. J&K remains a Union Territory; the Supreme Court directed restoration at the earliest but did not itself restore Statehood.
- **Key discipline:** the locally held final official 2025 Set-A key supports answer **C** for Prelims GS-I Q52. No answer key is invented for any other item.
- **Boundary discipline:** no detailed Articles 239-241/239AA administration and no full Centre-State power-distribution survey are absorbed here.

ROADMAP

Stage	Sessions	Learning outcome
Foundation	1-3	Article 1 identity and territory; Article 2 versus Article 3
Core constitutional mechanism	4-7	procedure, Article 4, Schedules, cession and boundary settlement
Historical development	8-11	integration, 1950 map, Dhar/JVP/Andhra, Fazl Ali/1956 and later map changes
Synthesis	12-15	UT nuance, J&K stress test, smaller States and territorial federalism

BASIC LEARNING SESSION

SESSION 1 - CONSTITUTIONAL CONCEPTION: WHY ARTICLE 1 SAYS 'UNION OF STATES'

VISUAL FIRST

ARTICLE 1

```
+ - name: "India, that is Bharat"
+ - polity: "Union of States"
+ - design: no State compact + no right to secede
      ↓
```

INDISSOLUBLE UNION + ALTERABLE INTERNAL MAP

This visual fixes the constitutional sequence before the explanatory detail.

ANSWER-GRABBING LINE

Article 1 makes national permanence compatible with territorial flexibility: the Union cannot secede from itself, but Parliament may constitutionally reshape its constituent States.

MUST-WRITE KEYWORDS

India, that is Bharat; Union of States; no compact; no secession; indestructible Union; alterable States

TEACHING AND ANALYSIS

[FACT] Article 1 chooses the expression "Union of States", not "Federation of States". The framers wanted the Constitution to show that India is federal in structure, but not the product of a treaty among pre-existing sovereign units.

[FACT] Ambedkar's two-point explanation remains the best exam opening: the Indian federation was not formed by agreement among the States, and no State has a right to secede. The Union is therefore indestructible even though State boundaries are not.

[ANALYSIS] UPSC rewards the design inference. India is not unitary because powers are constitutionally distributed; but it is not a compact federation either because Parliament can redraw the internal map under Article 3 and because the States are constitutionally derived units.

[LIMIT] "Indestructible Union of destructible States" is a powerful analytical formula, not the literal text of Article 1. Use it to explain the territorial chapter; do not present it as a quotation from the Constitution.

UPSC trap: "Union of States" means a unitary State. Correct approach: it means a federation with a centralising, anti-secession design.

HOW TO WRITE THE ANSWER PARAGRAPH

Article 1 calls India a Union of States. Ambedkar explained that the federation did not arise from an agreement among sovereign States and no State retained a right to secede. This anti-secession design protects the Union, while Article 3 leaves State boundaries alterable. Thus the familiar phrase 'indestructible Union of destructible States' is an analytical description, not constitutional wording.

NAMED EVIDENCE

Article 1; Constituent Assembly explanation by B. R. Ambedkar; Article 3.

PRELIMS TRAP

Do not infer that 'Union' means a unitary State, and do not present the analytical formula as a verbatim constitutional quotation.

MAINS USE

Use as the opening thesis for Article 3, territorial federalism or national-integration answers.

MINI RECAP

Union permanent; secession unavailable; State identity constitutionally real but territorial boundaries not immutable.

SESSION 2 - ARTICLES 1 TO 4 CLAUSE-BY-CLAUSE: THE CONSTITUTIONAL ARCHITECTURE OF TERRITORY

VISUAL FIRST

TERRITORY OF INDIA

- + - territories of States
- + - Union Territories in the First Schedule
- + - territories that may be acquired

UNION OF INDIA = States as federal members

TERRITORY OF INDIA = wider sovereign space

This visual fixes the constitutional sequence before the explanatory detail.

ANSWER-GRABBING LINE

The Territory of India is wider than the Union of India because sovereignty extends over States, Union Territories and acquired territory, while federal membership belongs to States.

MUST-WRITE KEYWORDS

Article 1(1)-(3); three components; First Schedule; federal membership; acquired territory; territorial extent

TEACHING AND ANALYSIS

Provision	Exact constitutional move	High-yield implication
Article 1(1)	India, that is Bharat, shall be a Union of States	Name of the country + form of polity
Article 1(2)	The States and the territories thereof shall be as specified in the First Schedule	Territorial listing is constitutional, not merely administrative
Article 1(3)	The territory of India shall comprise (a) territories of the States, (b) Union Territories specified in the First Schedule, and (c) such other territories as may be acquired	Explains the difference between Union of India and Territory of India
Article 2	Parliament may by law admit into the Union, or establish, new States on such terms and conditions as it thinks fit	External admission or establishment
Article 3(a)-(e)	Parliament may form a new State, increase area, diminish area, alter boundaries, or alter the name of any State	Internal reorganisation
Article 4(1)	Laws under Articles 2 and 3 may amend the First and Fourth Schedules and include supplemental, incidental and consequential provisions	Representation and transitional machinery travel with the same law
Article 4(2)	Such a law is not deemed an amendment for the purposes of Article 368	Internal reorganisation is ordinarily outside the amendment procedure

[FACT] Article 1(1) also captures the famous naming compromise: "India" and "Bharat" were both politically resonant, so the Constitution retained both.

[FACT] Article 1(2) makes the First Schedule central. The schedule is the formal list of State and Union Territory names and territorial extent. When units are renamed, merged, reorganised or ceded, the schedule changes.

[FACT] Article 1(3) creates the key taxonomic distinction. The Union of India means the States as federal members. The Territory of India is wider: it includes the States, the Union Territories and any territories that India may acquire.

[ANALYSIS] That difference is not pedantic. It explains why Union Territories belong to India without being equal federal partners and why acquired territory can enter Indian sovereignty before its internal constitutional location is finally settled.

HOW TO WRITE THE ANSWER PARAGRAPH

Article 1(1) settles name and polity; Article 1(2) links States and their territories to the First Schedule; Article 1(3) lists three components of the territory of India. The distinction matters because a Union Territory belongs to India without thereby becoming an equal State-member of the federation, while acquired territory may enter Indian sovereignty before Parliament determines its internal constitutional placement.

NAMED EVIDENCE

Article 1(2)-(3); First Schedule; current Constitution of India dated 1 May 2026.

PRELIMS TRAP

Do not use 'Union of India' and 'Territory of India' as synonyms; acquired territory is an express third component, not automatically a State or UT.

MAINS USE

A compact definition table earns marks in questions on Article 1, acquisition or territorial status.

MINI RECAP

States form the federal Union; States + UTs + acquired territory form the territory of India.

SESSION 3 - ARTICLE 2 AND ARTICLE 3 ARE NOT THE SAME POWER

VISUAL FIRST

ARTICLE 2	ARTICLE 3
admit / establish new State entry-establishment question	reorganise existing Indian units form / enlarge / diminish / alter boundary / alter name

This visual fixes the constitutional sequence before the explanatory detail.

ANSWER-GRABBING LINE

Articles 2 and 3 separate entry into the Union from rearrangement within the Union; confusing them destroys the constitutional route.

MUST-WRITE KEYWORDS

admit; establish; internal reorganisation; clauses (a)-(e); existing units; external-entry shorthand

TEACHING AND ANALYSIS

[FACT] Article 2 is conceptually about entry from outside the existing Union: Parliament may admit or establish new States on terms it thinks fit. Article 3 is conceptually about internal readjustment among units already inside the Union.

Article 3 limb	Exact operation	Typical exam use
3(a)	Form a new State by separating territory from any State, by uniting two or more States or parts of States, or by uniting any territory to a part of any State	Bifurcation, merger, combination
3(b)	Increase the area of any State	Adjustment / addition
3(c)	Diminish the area of any State	Carving out territory
3(d)	Alter the boundaries of any State	Boundary revision
3(e)	Alter the name of any State	Renaming

[FACT] Two explanations matter. Explanation I says that for clauses (a) to (e), "State" includes a Union Territory, but in the proviso it does not. Explanation II says that clause (a) includes the power to form a new State or Union Territory by uniting a part of any State or Union Territory to any other State or Union Territory.

[ANALYSIS] This is why the common formula "Article 3 only means State bifurcation" is too narrow. It also reaches boundary changes, name changes, and UT-linked combinations.

[LIMIT] Indian constitutional practice has used Article 3 far more often than Article 2. Do not force uncertain examples of Article 2 when the safer conceptual point is the difference between external admission/establishment and internal reorganisation.

UPSC trap: Articles 2 and 3 both create new States, so the distinction is trivial. Correct approach: the distinction controls whether the Constitution is dealing with an outsider's entry or an insider's reorganisation.

HOW TO WRITE THE ANSWER PARAGRAPH

Article 2 authorises Parliament to admit into the Union or establish new States on terms and conditions it thinks fit. Article 3 is the internal map-making provision: it can form a new State by separation or union, increase or diminish area, alter boundaries and alter names. 'Outside versus inside' is useful classroom shorthand, but the Constitution itself uses 'admit or establish' and does not print that slogan.

NAMED EVIDENCE

Articles 2 and 3; Telangana under the Andhra Pradesh Reorganisation Act, 2014 as an Article 3 illustration.

PRELIMS TRAP

Telangana, Chhattisgarh and State renamings are Article 3 matters, not Article 2 admissions.

MAINS USE

Begin with the textual verbs, then explain why admission, acquisition and internal reorganisation remain distinct questions.

MINI RECAP

Article 2 = admission/establishment; Article 3 = internal alteration of existing Indian units.

SESSION 4 - ARTICLE 3 PROCEDURE: CONSULTATION WITHOUT CONSENT

VISUAL FIRST

PRESIDENT'S PRIOR RECOMMENDATION
↓
REFERENCE TO AFFECTED STATE LEGISLATURE
↓ views within specified/extended time
PARLIAMENT CONSIDERS - NOT BOUND
↓
ORDINARY LAW + PRESIDENTIAL ASSENT

This visual fixes the constitutional sequence before the explanatory detail.

ANSWER-GRABBING LINE

Article 3 constitutionalises consultation, not consent: the affected State must receive a voice, but not a veto.

MUST-WRITE KEYWORDS

prior recommendation; President; State-legislature reference; specified period; views; non-binding; no State consent

TEACHING AND ANALYSIS

[FACT] Article 3 does not permit a free-floating private or ordinary parliamentary initiative. A bill for State reorganisation can be introduced only on the prior recommendation of the President.

[FACT] Before making that recommendation, the President refers the bill to the legislature of the affected State for expressing its views within the time specified in the reference, or within any extended time the President allows.

[FACT] Those views are not binding. Parliament may accept, modify or reject them. It is also not necessary to make a fresh reference to the State legislature for every later amendment adopted in Parliament.

[FACT] In the case of a Union Territory, the constitutional proviso does not require a comparable legislature-reference step.

[ANALYSIS] The constitutional formula is consultation without consent. This is the single most important high-yield distinction in the chapter. Students lose marks when they treat the State legislature's opinion as a veto.

[ANALYSIS] Compared with compact federations such as the United States, the Indian design clearly privileges national continuity and parliamentary flexibility over sub-national entrenchment. That is why Article 3 is one of the clearest textual proofs of the Constitution's strong-Centre tilt.

[LIMIT] The existence of consultation still matters. The President's reference is not empty ritual: it constitutionalises notice, invites a formal record of regional objections, and gives Parliament a consultative file even though it does not create a State veto.

UPSC trap: State consent is mandatory. Correct approach: President's recommendation and legislature-reference for views are mandatory; State consent is not.

HOW TO WRITE THE ANSWER PARAGRAPH

A Bill under Article 3 can be introduced only on the President's recommendation. If it affects the area, boundary or name of a State, the President refers it to that legislature for views within a period that may be extended. Parliament is not bound by those views, and the Bill need not be referred afresh merely because Parliament later amends it. The legal minimum is consultation; political prudence may demand much more.

NAMED EVIDENCE

Article 3 proviso; Babulal Parate line of doctrine on non-binding views; reorganisation practice.

PRELIMS TRAP

State consent, ratification by half the States and a referendum are not Article 3 conditions.

MAINS USE

Separate constitutional validity from democratic legitimacy: non-binding views answer the legal question but not the federal-trust question.

MINI RECAP

President recommends; State comments; Parliament decides.

SESSION 5 - ARTICLE 4: SUPPLEMENTAL, INCIDENTAL AND CONSEQUENTIAL PROVISIONS - AND WHY THIS IS NOT ARTICLE 368

VISUAL FIRST

ARTICLE 2/3 LAW

- + First Schedule adjustment
- + Fourth Schedule adjustment
- + supplemental / incidental / consequential provisions
- + NOT deemed an Article 368 amendment



SIMPLE LEGISLATIVE MAJORITY

This visual fixes the constitutional sequence before the explanatory detail.

ANSWER-GRABBING LINE

Article 4 makes territorial change constitutionally consequential but procedurally ordinary.

MUST-WRITE KEYWORDS

First Schedule; Fourth Schedule; supplemental; incidental; consequential; Article 4(2); simple majority

TEACHING AND ANALYSIS

[FACT] Article 4(1) allows a law under Articles 2 or 3 to do more than just redraw territory. It may amend the First Schedule and the Fourth Schedule and include supplemental, incidental and consequential provisions, including adjustments of representation in Parliament and in the legislature or legislatures of the affected States.

[FACT] Article 4(2) then declares that such a law shall not be deemed an amendment of the Constitution for the purposes of Article 368. The law therefore passes by ordinary majority through the ordinary legislative process.

Issue	Article 3 + Article 4 law	Article 368 amendment
Internal reorganisation of States or UTs	Yes	Not normally required
First Schedule / Fourth Schedule changes flowing from reorganisation	Yes	Built into Article 4
Cession of accepted Indian territory to a foreign State	No	Yes, after Berubari Union (1960)
Majority route	Ordinary majority	Special majority, plus state ratification where applicable

[ANALYSIS] Article 4 is the constitutional lubricant of reorganisation. Without it, every merger, bifurcation, renaming or representation adjustment would become needlessly cumbersome.

[LIMIT] Article 4 does not erase the sovereignty line. It simplifies internal territorial change; it does not authorise transfer of Indian territory to a foreign sovereign.

UPSC trap: every territorial change is a constitutional amendment. Correct approach: internal reorganisation ordinarily travels through Article 3 read with Article 4; cession does not.

HOW TO WRITE THE ANSWER PARAGRAPH

A law under Article 2 or 3 may amend the First Schedule's territorial entries and the Fourth Schedule's Rajya Sabha allocation, while handling representation, assets, services, courts and transitional arrangements. Article 4(2) declares that such a law is not an amendment for Article 368 purposes. It therefore follows the ordinary legislative route and normally requires a simple majority of members present and voting.

NAMED EVIDENCE

Article 4(1)-(2); reorganisation enactments containing representation and transition chapters.

PRELIMS TRAP

A First Schedule change does not automatically require Article 368; the decisive question is whether it is authorised by Articles 2-4.

MAINS USE

Use Article 4 to explain why the map is easier to alter than entrenched federal compact models.

MINI RECAP

Schedule changes travel with the reorganisation law; Article 368 is not invoked merely because a Schedule changes.

SESSION 6 - THE FIRST SCHEDULE AS A LIVING TERRITORIAL LEDGER

VISUAL FIRST

FIRST SCHEDULE = TERRITORIAL LEDGER
name + territorial description
↓ updated by valid constitutional route
FOURTH SCHEDULE = RAJYA SABHA ALLOCATION

STATUS CHANGES ONLY THROUGH OPERATIVE LAW
not speeches, demands, assurances or committee talks

This visual fixes the constitutional sequence before the explanatory detail.

ANSWER-GRABBING LINE

The First Schedule is the Constitution's territorial ledger, so current-status claims must follow operative law rather than political expectation.

MUST-WRITE KEYWORDS

living ledger; territorial description; Rajya Sabha allocation; operative law; appointed day; current-status discipline

TEACHING AND ANALYSIS

[FACT] The First Schedule is the Constitution's territorial ledger. It names the States and Union Territories and records their territorial extent. Whenever a unit is created, renamed, merged, split or ceded, the schedule must reflect that shift.

[FACT] That is why different kinds of legal instruments change the same schedule. Article 3 read with Article 4 changes it for internal reorganisation; the Ninth Amendment changed it for Berubari Union (1960)-related cession; the 100th Amendment changed it for the India-Bangladesh Land Boundary Agreement; the 2019 and 2020 laws changed it for the J&K-Ladakh split and the DNH-Daman and Diu merger.

[FACT] As of 7 Sep 2026, the operational constitutional count is 28 States and 8 Union Territories.

[ANALYSIS] The schedule's exam value is twofold: it anchors territorial facts, and it reminds you that territorial questions are constitutional-structural, not merely map-trivia questions.

HOW TO WRITE THE ANSWER PARAGRAPH

The First Schedule records States and Union Territories and their territorial descriptions; Article 4 enables consequential Fourth Schedule changes. A Bill, political promise, judicial exhortation or public demand does not by itself rewrite that ledger. Examination answers should therefore attach a date to current State/UT counts and distinguish enactment from commencement through the statutory 'appointed day'.

NAMED EVIDENCE

First and Fourth Schedules; current Constitution dated 1 May 2026; India Code reorganisation Acts.

PRELIMS TRAP

Never convert a proposal or assurance into an accomplished territorial change.

MAINS USE

Use 'operative law versus political demand' as the controlling current-affairs distinction.

MINI RECAP

Read the Schedule and appointed-day notification, not the headline alone.

SESSION 7 - ACQUISITION, CESSION AND BOUNDARY SETTLEMENT: BERUBARI UNION (1960), THE 1969 DISTINCTION AND THE 100TH AMENDMENT

VISUAL FIRST

INDIAN TITLE ACCEPTED?

+ - YES, surrender abroad -> CESSION -> ARTICLE 368

+ - NO, disputed line merely fixed -> BOUNDARY SETTLEMENT

-> executive implementation may suffice

This visual fixes the constitutional sequence before the explanatory detail.

ANSWER-GRABBING LINE

The constitutional dividing line is sovereignty: Article 3 can redraw India internally, but cannot surrender accepted Indian territory to a foreign State.

MUST-WRITE KEYWORDS

cession; accepted Indian territory; Article 368; Berubari Union; Maganbhai; boundary ascertainment; sovereignty test

TEACHING AND ANALYSIS

[FACT] Article 1(3)(c) gives the Constitution capacity to receive acquired territory but does not itself prescribe a mode. Traditional polity texts list cession, purchase, gift, lease-linked transfer, occupation, conquest or subjugation, and plebiscitary transfer.

[LIMIT] A modern answer must qualify the historical list: contemporary international law and the UN Charter sharply constrain acquisition by force.

[FACT] The hard constitutional question is not acquisition alone, but the legal route for parting with territory. In Berubari Union (1960), a Presidential reference under Article 143 arose after a proposal to transfer part of the Berubari Union (1960) area in West Bengal to Pakistan.

[FACT] The Supreme Court held that Parliament's power under Article 3 to diminish the area of a State does not include cession of Indian territory to a foreign country. The consequence was the Constitution (Ninth Amendment) Act, 1960, which supplied the constitutional route for implementing the agreement.

[LIMIT] Avoid saying that the Ninth Amendment by itself completed every contemplated East Pakistan transfer. Official background to the later LBA records that the relevant portion was not operationalised at that stage amid litigation and political developments.

[FACT] In a later 1969 ruling, the Supreme Court distinguished a boundary settlement from cession: when the legal issue is ascertainment or implementation of an existing boundary and not the transfer of accepted Indian territory, Article 368 is not automatically triggered.

[FACT] The 100th Amendment Act, 2015 later implemented the India-Bangladesh Land Boundary Agreement and its protocol. It exchanged 111 enclaves to Bangladesh and 51 enclaves to India, addressed adverse possessions, and modified the First Schedule entries for Assam, West Bengal, Meghalaya and Tripura.

[FACT] The MEA records that the enclave exchange took effect from midnight of 31 July 2015.

[ANALYSIS] The decisive constitutional line is therefore not simply domestic versus international, but internal readjustment versus loss of sovereign territory. That is the line Berubari Union (1960) fixed.

[LIMIT] Do not over-extend the 1969 principle. It concerns boundary ascertainment and implementation, not a general licence to transfer accepted Indian territory without constitutional amendment.

UPSC trap: any reduction of a State's area equals cession. Correct approach: internal diminution under Article 3 is not the same as cession to a foreign sovereign.

HOW TO WRITE THE ANSWER PARAGRAPH

In *In re Berubari Union* (1960), the Supreme Court held that Article 3's power to diminish a State did not include cession of Indian territory to a foreign country; constitutional amendment under Article 368 was required, leading to the Ninth Amendment route. *Maganbhai Ishwarbhai Patel* (1969) distinguished genuine settlement or demarcation of an uncertain boundary: where India is not surrendering territory it accepts as its own, constitutional amendment is not automatically necessary.

NAMED EVIDENCE

Berubari Union (1960); Constitution (Ninth Amendment) Act, 1960; *Maganbhai Ishwarbhai Patel* (1969); Constitution (100th Amendment) Act, 2015.

PRELIMS TRAP

Do not say every international boundary settlement is cession, or that Article 3 can transfer sovereignty abroad.

MAINS USE

State the accepted-title test, apply it to the facts, then identify Article 368 or executive implementation.

MINI RECAP

Internal alteration: Article 3. Foreign cession: Article 368. Genuine disputed-boundary settlement: may not need amendment.

SESSION 8 - STATE OF WEST BENGAL V UNION OF INDIA: WHY THE CASE MATTERS EVEN THOUGH IT IS NOT AN ARTICLE 3 CASE

VISUAL FIRST

1947 INTEGRATION
↓ accession / merger / consolidation
26 JAN 1950 TRANSITIONAL MAP
+- Part A: 9
+- Part B: 9
+- Part C: 10
+- Part D: Andaman & Nicobar Islands

This visual fixes the constitutional sequence before the explanatory detail.

ANSWER-GRABBING LINE

Political integration created one sovereignty; the 1950 Part A-B-C-D map was only an administrative bridge to a more coherent territorial order.

MUST-WRITE KEYWORDS

accession; merger; Patel; V. P. Menon; Part A/B/C/D; transitional classification; integration

TEACHING AND ANALYSIS

[FACT] *State of West Bengal v Union of India* (1963) concerned Parliament's competence to acquire State property under the Coal Bearing Areas (Acquisition and Development) Act. The majority upheld Parliament's competence.

[FACT] The case matters for this chapter because it treated the Indian Constitution as not "traditionally federal" in the classical treaty-compact sense. States were not treated as sovereign entities possessing a residual inviolable domain against the Union.

[ANALYSIS] Use the case for the strong-Centre thesis, especially when you need to explain why the Union can constitutionally outweigh States in questions about property, territorial flexibility or structural supremacy.

[LIMIT] Do not misuse the case. West Bengal is not the governing authority for cession or the Article 3 procedure. *Berubari Union* (1960) and the Article 3 text do that work.

HOW TO WRITE THE ANSWER PARAGRAPH

The post-1947 task was first to integrate British Indian provinces and princely entities into one sovereign constitutional order. Standard textbook treatment highlights Hyderabad, Junagadh and Jammu and Kashmir as difficult cases, but numerical totals vary with counting date and category and must be labelled as conventions. At commencement, the Constitution used Part A, B, C and D categories: a transitional arrangement reflecting different historical routes rather than a durable federal theory.

NAMED EVIDENCE

Instruments of Accession and merger process; First Schedule at commencement; standard local Laxmikanth chapter.

PRELIMS TRAP

Do not present the textbook 552/549 shorthand as an uncontested universal count; do not call every 1950 unit an equal State.

MAINS USE

Distinguish integration of sovereignty from later rationalisation of boundaries.

MINI RECAP

1947-49 integrated; 1950 classified; 1953-56 reorganised.

SESSION 9 - INTEGRATION OF PRINCELY STATES AND THE TRANSITIONAL 1950 MAP

VISUAL FIRST

DHAR COMMISSION 1948
administration before language
↓
JVP COMMITTEE 1948-49
linguistic reorganisation postponed/resisted
↓
POTTI SRIRAMULU'S DEATH, DEC 1952
↓
ANDHRA STATE, 1 OCT 1953

This visual fixes the constitutional sequence before the explanatory detail.

ANSWER-GRABBING LINE

The Andhra breakthrough converted language from a postponed demand into a constitutional problem that the Union had to organise rather than suppress.

MUST-WRITE KEYWORDS

Dhar Commission; JVP Committee; Potti Sriramulu; Andhra State Act, 1953; first linguistic State; 1 October 1953

TEACHING AND ANALYSIS

[FACT] Standard polity sources refer to 552 princely States at Independence. The advanced repository note records that 549 joined India, while Hyderabad, Junagadh and Kashmir became the best-known difficult cases.

[FACT] These three hard cases were resolved through different constitutional-political routes: Junagadh through plebiscitary confirmation after accession controversy, Hyderabad through police action, and Kashmir through accession under invasion conditions.

[FACT] The Constitution's first map in 1950 was therefore transitional. India was divided into Part A, Part B, Part C and Part D units: former Governors' provinces, former princely States or unions, centrally administered units, and the Andaman and Nicobar Islands respectively.

Category	Number	Units
Part A	9	Assam, Bihar, Bombay, Madhya Pradesh, Madras, Orissa, Punjab, United Provinces, West Bengal

Category	Number	Units
Part B	9	Hyderabad, Jammu and Kashmir, Madhya Bharat, Mysore, Patiala and East Punjab States Union, Rajasthan, Saurashtra, Travancore-Cochin, Vindhya Pradesh
Part C	10	Ajmer, Bhopal, Bilaspur, Cooch Behar, Coorg, Delhi, Himachal Pradesh, Kutch, Manipur, Tripura
Part D	1	Andaman and Nicobar Islands

[ANALYSIS] This arrangement shows that Article 1 provided a permanent constitutional shell, but the internal territorial map remained open to revision. The territorial chapter was designed to stabilise sovereignty first and optimise the map later.

UPSC traps: Manipur and Tripura were Part C; Hyderabad was Part B; Bombay was Part A; Andaman and Nicobar Islands alone formed Part D.

[LIMIT] The textbook total of **552 princely States** and the shorthand **549 joined / three difficult cases** are retained as the repository owner's conventional count. They must not be read as if all accessions were identical one-step transactions. Integration also used Instruments of Accession, Merger Agreements, diplomacy, state unions and later constitutional reclassification. Hyderabad, Junagadh and Jammu and Kashmir are highlighted because their routes were politically difficult, not because the remaining integrations were legally or administratively uniform.

HOW TO WRITE THE ANSWER PARAGRAPH

The Linguistic Provinces Commission under S. K. Dhar in 1948 preferred administrative convenience to language. The JVP Committee-Jawaharlal Nehru, Vallabhbhai Patel and Pattabhi Sitaramayya-also resisted immediate linguistic reorganisation. Potti Sriramulu's fast and death in December 1952 transformed the Andhra demand; the Andhra State Act, 1953 commenced on 1 October 1953. Andhra, not Maharashtra, is the standard first linguistic-State milestone after independence.

NAMED EVIDENCE

Dhar Commission (1948); JVP report (1949); Andhra State Act, 1953; Potti Sriramulu episode.

PRELIMS TRAP

Do not reverse Dhar-JVP-Fazl Ali chronology or name Maharashtra as the first linguistic State.

MAINS USE

Use the sequence to show how democratic mobilisation altered territorial policy.

MINI RECAP

Dhar resisted; JVP postponed; Sriramulu catalysed; Andhra formed in 1953.

SESSION 10 - LINGUISTIC REORGANISATION: DHAR, JVP, ANDHRA AND THE FAZL ALI / SRC SETTLEMENT

VISUAL FIRST

FAZL ALI / STATES REORGANISATION COMMISSION, 1953

- + language and culture
- + unity and security
- + financial/economic/administrative viability
- + welfare and planning

↓

SRA 1956 + 7TH AMENDMENT

↓

14 STATES + 6 UNION TERRITORIES, 1 NOV 1956

This visual fixes the constitutional sequence before the explanatory detail.

ANSWER-GRABBING LINE

Fazl Ali accepted language as a major principle but rejected 'one language-one State', thereby converting identity into a multi-factor federal settlement.

MUST-WRITE KEYWORDS

Fazl Ali Commission; K. M. Panikkar; H. N. Kunzru; multi-factor test; Seventh Amendment; States Reorganisation Act; 1 November 1956

TEACHING AND ANALYSIS

[FACT] The Dhar Commission (1948) recommended reorganisation on administrative convenience rather than language. The JVP Committee (1948-49) - Jawaharlal Nehru, Vallabhbhai Patel and Pattabhi Sitaramayya - formally rejected language as the decisive principle.

[FACT] Events then outran the initial caution. After Potti Sriramulu's death following a prolonged fast, Andhra State was created in 1953 out of the Telugu-speaking areas of Madras. It was the first major linguistic State.

[FACT] The Fazl Ali / States Reorganisation Commission (1953-55) broadly accepted language as a basis but rejected the slogan "one language, one State". It emphasised four balancing considerations: national unity and security, linguistic-cultural homogeneity, financial-economic-administrative viability, and public welfare.

[FACT] The States Reorganisation Act, 1956 and the Seventh Amendment abolished the old Part A/B/C/D classification and created 14 States and 6 Union Territories on 1 November 1956.

The 14 States: Andhra Pradesh, Assam, Bihar, Bombay, Jammu and Kashmir, Kerala, Madhya Pradesh, Madras, Mysore, Orissa, Punjab, Rajasthan, Uttar Pradesh and West Bengal.

The 6 Union Territories: Andaman and Nicobar Islands, Delhi, Himachal Pradesh, Laccadive-Minicoy-Amindivi Islands, Manipur and Tripura.

Major 1956 territorial effects

- Kerala combined Travancore-Cochin, Malabar and Kasaragod.
- Andhra State combined with the Telugu-speaking part of Hyderabad to form Andhra Pradesh.
- Madhya Bharat, Vindhya Pradesh and Bhopal were consolidated into Madhya Pradesh.
- Saurashtra and Kutch were merged into Bombay.
- Coorg was merged into Mysore.
- PEPSU was merged into Punjab.
- Ajmer was merged into Rajasthan.
- Laccadive, Minicoy and Amindivi Islands became a Union Territory.

[ANALYSIS] Linguistic reorganisation is one of the strongest answers to the claim that a strong Union must suppress regional identity. In India, the same constitutional order absorbed identity by redrawing units rather than denying its existence.

[LIMIT] Do not simplify the story into language alone. The SRC explicitly refused one language-one State and treated viability and unity as equally important.

UPSC trap: Fazl Ali endorsed a pure language test. Correct approach: language mattered, but not as an exclusive or mechanical rule.

HOW TO WRITE THE ANSWER PARAGRAPH

The States Reorganisation Commission was appointed in 1953 under Fazl Ali with K. M. Panikkar and H. N. Kunzru. It recognised linguistic-cultural homogeneity but balanced it against national unity and security, administrative and economic viability, and welfare. The States Reorganisation Act, 1956 and Seventh Amendment abolished the Part A-B-C-D scheme and produced 14 States and 6 Union Territories from 1 November 1956. Language was accepted, not made mechanically sovereign.

NAMED EVIDENCE

States Reorganisation Commission report; States Reorganisation Act, 1956; Constitution (Seventh Amendment) Act, 1956.

PRELIMS TRAP

Fazl Ali did not endorse a separate State for every linguistic group.

MAINS USE

Present 1956 as calibrated accommodation: identity recognised within unity, viability and administration.

MINI RECAP

Language mattered; viability qualified it; 1956 replaced the transitional map.

SESSION 11 - AFTER 1956: STATE CREATION, RENAMING AND THE ROUTE TO 28 STATES AND 8 UNION TERRITORIES

VISUAL FIRST

MAJOR OFFICIAL MILESTONES AFTER 1956

1960 Maharashtra/Gujarat -> 1963 Nagaland -> 1966 Haryana

1971 Himachal -> 1972 Manipur/Tripura/Meghalaya

1975 Sikkim -> 1987 Mizoram/Arunachal/Goa

2000 Chhattisgarh/Uttarakhand/Jharkhand

2014 Telangana -> 2019 J&K/Ladakh UTs -> 2020 DNH-DD merger

This visual fixes the constitutional sequence before the explanatory detail.

ANSWER-GRABBING LINE

Post-1956 reorganisation shows that language began the settlement, but ethnicity, administration, peace, development, security and viable scale continued to redraw the map.

MUST-WRITE KEYWORDS

Bombay Reorganisation; Nagaland; Punjab Reorganisation; North-Eastern Areas; Sikkim; 2000 States; Telangana; appointed day

TEACHING AND ANALYSIS

Year	Change	High-yield note
1960	Maharashtra and Gujarat	Bombay split; Gujarat became the 15th State
1963	Nagaland	16th State, carved from Assam's Naga Hills-Tuensang area
1966	Haryana + UT Chandigarh; hill areas to Himachal Pradesh	Punjab reorganisation
1971	Himachal Pradesh	UT to State
1972	Manipur, Tripura and Meghalaya became States; Mizoram and Arunachal became UTs	North-East reorganisation
1974	Sikkim received associate-State status	35th Amendment inserted Article 2A and a Tenth Schedule, both later repealed
1975	Sikkim became full State	36th Amendment; Article 371F special provisions
1987	Mizoram, Arunachal Pradesh and Goa became States	Goa separated from Goa, Daman and Diu UT
2000	Chhattisgarh, Uttarakhand and Jharkhand	Smaller-State phase
2014	Telangana	Carved out of Andhra Pradesh
2019	Jammu and Kashmir reorganised into the UT of J&K and the UT of Ladakh	Current chapter's most recent major territorial shock
2020	Dadra and Nagar Haveli merged with Daman and Diu, effective 26 January	Reduced UT count from 9 to 8

[FACT] Several renamings are also exam-worthy: United Provinces to Uttar Pradesh (1950), Madras to Tamil Nadu (1969), Mysore to Karnataka (1973), Laccadive-Minicoy-Amindivi Islands to Lakshadweep (1973), Uttaranchal to Uttarakhand (2006), Pondicherry to Puducherry (2006), and Orissa to Odisha (2011).

[FACT] Sikkim deserves separate attention. It first became an associate State through the 35th Amendment and Article 2A / Tenth Schedule arrangement, then a full-fledged State through the 36th Amendment, which also inserted Article 371F.

Territorial incorporation	Constitutional step
Dadra and Nagar Haveli	Tenth Amendment, 1961
Goa, Daman and Diu	Twelfth Amendment, 1962
Puducherry	Fourteenth Amendment, 1962

[FACT] The 2019 J&K reorganisation produced 28 States and 9 UTs. The 2020 DNH-DD merger changed only the UT count, producing the present **28 States and 8 UTs**.

[ANALYSIS] Reorganisation after 1956 proves that Article 3 is not a one-time linguistic device. It has remained the constitutional valve through which regional demands, administrative feasibility, insurgency settlements and federal adjustments have been processed.

Statehood-number sequence after 1956

Statehood order	State and year	Source-safe route
15th	Gujarat, 1960	Bombay Reorganisation; Maharashtra continued as the other successor unit
16th	Nagaland, 1963	State of Nagaland Act with the Thirteenth Amendment / Article 371A settlement
17th	Haryana, 1966	Punjab Reorganisation
18th	Himachal Pradesh, 1971	Union Territory upgraded to State
19th-21st	Manipur, Tripura and Meghalaya, 1972	North-Eastern Areas reorganisation
22nd	Sikkim, 1975	Thirty-Sixth Amendment after the brief associate-State phase
23rd-25th	Mizoram, Arunachal Pradesh and Goa, 1987	Statehood Acts; Goa separated from the former Goa, Daman and Diu UT
26th-28th	Chhattisgarh, Uttarakhand and Jharkhand, 2000	Reorganisation of Madhya Pradesh, Uttar Pradesh and Bihar
29th	Telangana, 2014	Andhra Pradesh Reorganisation Act

[LIMIT] Statehood numbers are used only where the repository owner directly grounds them. Maharashtra is not labelled the 15th State: Gujarat is conventionally counted as the 15th because the bilingual Bombay State was reorganised into the two successor States.

Union-Territory incorporation and merger sequence

- [FACT] **Dadra and Nagar Haveli**, formerly under Portuguese rule, entered the First Schedule as a Union Territory through the **Tenth Amendment, 1961**.
- [FACT] **Goa, Daman and Diu**, after the end of Portuguese rule in December 1961, entered through the **Twelfth Amendment, 1962**; Goa became a State in 1987.
- [FACT] The former French establishments now forming **Puducherry** entered through the **Fourteenth Amendment, 1962**. Detailed legislature and administration doctrine belongs to Topic 25.
- [FACT] The **Dadra and Nagar Haveli and Daman and Diu (Merger of Union Territories) Act, 2019** took effect on **26 January 2020**, reducing the Union-Territory count from nine to eight.
- [FACT] **Delhi became the National Capital Territory of Delhi** through the **Sixty-Ninth Amendment, 1991**; its Article 239AA administration belongs to Topic 25.

HOW TO WRITE THE ANSWER PARAGRAPH

Major dated milestones, verified through reorganisation enactments and the standard constitutional chronology, include Maharashtra and Gujarat on 1 May 1960; Nagaland in 1963; Haryana in 1966; Himachal Pradesh in 1971; Manipur, Tripura and Meghalaya on 21 January 1972; Sikkim in 1975; Mizoram, Arunachal Pradesh and Goa in 1987; Chhattisgarh, Uttarakhand and Jharkhand in 2000; and Telangana on 2 June 2014. The sequence should be used selectively to prove changing drivers, not recited as an unqualified blanket list.

NAMED EVIDENCE

Bombay Reorganisation Act, 1960; State of Nagaland Act, 1962 and Thirteenth Amendment; North-Eastern Areas (Reorganisation) Act, 1971; Andhra Pradesh Reorganisation Act, 2014.

PRELIMS TRAP

Tripura attained Statehood in 1972; Arunachal Pradesh in 1987. Telangana was the 29th State when formed but the current total later returned to 28 after the 2019 J&K reorganisation.

MAINS USE

Choose examples by causal category-language, ethnicity/peace, administration/development, security-rather than dumping chronology.

MINI RECAP

The map remained dynamic after 1956; reasons diversified beyond language.

SESSION 12 - ARTICLE 3'S STATE-UT CONSULTATION NUANCE

VISUAL FIRST

ARTICLE 3, EXPLANATION I

clauses (a)-(e): "State" includes a Union Territory
proviso: "State" does NOT include a Union Territory

EXPLANATION II

new State/UT may combine parts of States and/or UTs

This visual fixes the constitutional sequence before the explanatory detail.

ANSWER-GRABBING LINE

Article 3 treats Union Territories as rearrangeable units but withholds the proviso's constitutionally guaranteed legislature-reference from them.

MUST-WRITE KEYWORDS

Explanation I; Explanation II; State includes UT; proviso exclusion; combination of parts; consultation asymmetry

TEACHING AND ANALYSIS

[FACT] Explanation I says that "State" includes a Union Territory for clauses (a) to (e), but does not include a Union Territory in the proviso.

[FACT] Explanation II says the clause (a) power includes forming a new State or UT by uniting part of any State or UT to any other State or UT.

Situation	Constitutional result
Proposal affects a State's area, boundary or name	President refers the Bill to that State legislature for views
Proposal affects a UT	Article 3 gives no equivalent proviso-based right of reference
A UT happens to have a legislature	That does not convert it into a "State" for the proviso

[ANALYSIS] The operative power is wide; the consultation safeguard is narrower. This is a favourite close-option trap and also explains why UT-linked reorganisation is textually easier for Parliament than State-boundary revision.

[LIMIT] The presence of a UT legislature does not convert that territory into a "State" for the purposes of the Article 3 proviso.

HOW TO WRITE THE ANSWER PARAGRAPH

For the substantive clauses (a)-(e), Explanation I includes a Union Territory within 'State'; for the proviso on legislative reference, it does not. Explanation II confirms that Parliament may form a new State or Union Territory by uniting parts of States or UTs. The result is a precise consultation asymmetry: even a UT with a legislature has no equivalent Article 3 proviso entitlement. Detailed administration under Articles 239-241 and 239AA belongs to Topic 25.

NAMED EVIDENCE

Article 3, Explanations I and II; *In Re Article 370* (2023) discussion of Ladakh.

PRELIMS TRAP

Do not say a UT legislature has the same Article 3 consultation right as a State legislature.

MAINS USE

Use only to refine the Article 3 procedure; avoid drifting into detailed UT administration.

MINI RECAP

UT included for map-making, excluded from the proviso's State-reference guarantee.

SESSION 13 - J&K REORGANISATION AS AN ARTICLE 3 ILLUSTRATION

VISUAL FIRST

J&K REORGANISATION ACT, 2019

appointed day: 31 OCT 2019

+ - Jammu and Kashmir: UT with Legislature

+ - Ladakh: UT without Legislature

↓

IN RE ARTICLE 370, 11 DEC 2023

Ladakh carving upheld; broader whole-State conversion issue left qualified

This visual fixes the constitutional sequence before the explanatory detail.

ANSWER-GRABBING LINE

The 2019 J&K reorganisation is an Article 3 stress test: it confirms wide territorial power, but the Supreme Court did not issue a general licence to convert every State into Union Territories.

MUST-WRITE KEYWORDS

J&K Reorganisation Act; 31 October 2019; Ladakh; Explanation I; 2023 INSC 1058; restoration at earliest; issue left open

TEACHING AND ANALYSIS

[FACT] The Jammu and Kashmir Reorganisation Act, 2019 took effect on 31 October 2019 and created the UT of Jammu and Kashmir with a legislature and the UT of Ladakh without one.

[LIMIT] The J&K Legislative Assembly confirms the classification 'UT with Legislature'. Its detailed subject competence, Lieutenant-Governor relationship and Parliament-Assembly overlap belong to Topic 25 and are not retaught here.

[FACT] In *In Re Article 370* (11 December 2023), the Supreme Court held that:

- the State legislature's views under the first proviso to Article 3 are recommendatory;
- carving out Ladakh as a UT was valid under Article 3(a) read with Explanation I;
- because the Solicitor General stated that J&K Statehood would be restored, the Court found it unnecessary to determine whether converting the entire State into the two UTs was permissible under Article 3; and
- restoration of Statehood should take place "at the earliest and as soon as possible".

[FACT] Justice Sanjiv Khanna's concurrence stressed that State-to-UT conversion has grave federal consequences and must rest on strong grounds and strict Article 3 compliance.

[CURRENT STATUS] The MHA page checked on 7 September 2026 still described J&K as a UT with Legislature and Ladakh as a UT without Legislature. **The MHA page still described J&K as a UT with Legislature, and the official MHA/eGazette search located no later dated notification or order restoring Statehood.**

[LIMIT] Do not use the 2023 judgment as a general final approval of every whole-State-to-UT conversion. The case settles parts of the 2019 arrangement, but not every future State-to-UT downgrading controversy.

Ownership firewall

- **Topic 05 owns:** Articles 1-4, the First Schedule as territorial ledger, accession/integration, internal reorganisation, cession and current territorial status.

- **Topic 25 owns:** administration of Union Territories under Articles 239-241, Article 239A, Article 239AA/AB, Lieutenant-Governor relations and detailed legislature competence.

- **Topic 22 owns:** Article 370 doctrine, presidential orders, special-provision history and the wider merits of the 2023 judgment.
- This session uses Topic 25 and Topic 22 only to the minimum extent needed to classify J&K and Ladakh territorially and to state the bounded Article 3 holding.

HOW TO WRITE THE ANSWER PARAGRAPH

The Jammu and Kashmir Reorganisation Act, 2019 took effect on 31 October 2019, creating the UT of Jammu and Kashmir with a legislature and the UT of Ladakh without one. In *In Re Article 370* (11 December 2023), the Supreme Court treated State-legislature views under Article 3 as recommendatory and upheld the carving out of Ladakh under Article 3(a) read with Explanation I. Because the Union represented that J&K Statehood would be restored, the Court did not finally determine the broader validity of converting an entire State into one or more UTs.

NAMED EVIDENCE

Jammu and Kashmir Reorganisation Act, 2019; *In Re Article 370*, 2023 INSC 1058.

PRELIMS TRAP

Do not state that the Court conclusively approved every possible State-to-UT conversion.

MAINS USE

Use the case narrowly: legal holding, issue left open, and federal consequence must be separated.

MINI RECAP

Ladakh upheld; State views non-binding; general whole-State conversion question not finally settled.

SESSION 14 - CURRENT DEMANDS FOR NEW OR SMALLER STATES

VISUAL FIRST

NEW-STATE CLAIM
identity + neglect + distance + representation
↓
VIABILITY FILTER
fiscal capacity | administration | assets/debt | water/power
minorities | security | alternatives | transition
↓
ARTICLE 3 DECISION + NEGOTIATED IMPLEMENTATION

This visual fixes the constitutional sequence before the explanatory detail.

ANSWER-GRABBING LINE

Identity can justify a hearing for Statehood, but only viability and transition design can justify confidence in the new State.

MUST-WRITE KEYWORDS

identity; administrative access; fiscal viability; transition justice; assets and liabilities; minority safeguards; alternatives

TEACHING AND ANALYSIS

Demand type	Illustrative claims	Governance question
Identity and culture	Gorkhaland and other recurring subregional claims	Can autonomy protect identity without a new State?
Administrative distance	Bundelkhand-type claims	Will a smaller capital distance improve capacity?
Developmental imbalance	Vidarbha-type claims	Is underdevelopment caused by size or by policy and institutions?
Restoration/status upgrade	J&K Statehood; Ladakh Statehood demand	What federal, security, minority and transition safeguards are needed?

[FACT] PIB's MHA release of 24 September 2025 expressly recorded Ladakh Statehood and Sixth-Schedule demands within official dialogue. PIB's 14 March 2026 release recorded continuing engagement on safeguards; neither announced a territorial-status change.

[ANALYSIS] Test every demand against:

1. democratic support across affected districts and communities;
2. administrative accessibility;
3. fiscal and revenue viability;
4. division of assets, debt, water, power, employees and institutions;
5. capital and transition cost;
6. minority protection inside the proposed State;
7. inter-State and national-security effects; and
8. whether devolution or autonomy could solve the grievance at lower cost.

Qualified verdict: smaller is not automatically better. Statehood can improve representation and focus, but without capacity and negotiated transition it can merely relocate conflict.

HOW TO WRITE THE ANSWER PARAGRAPH

Smaller States may bring administration closer, create region-specific policy focus and improve accountability. Yet new capitals, cadres, courts and departments impose fixed costs; water, power, debt, employees and institutions require division; and a new regional majority may create a new minority. Chhattisgarh, Jharkhand, Uttarakhand and Telangana demonstrate both the policy opportunity and the institutional risks. Statehood is therefore a governance instrument, not a self-executing development guarantee.

NAMED EVIDENCE

States created in 2000; Andhra Pradesh Reorganisation Act, 2014; continuing inter-State transition questions.

PRELIMS TRAP

Neither 'smaller is always better' nor 'identity is irrelevant' is defensible.

MAINS USE

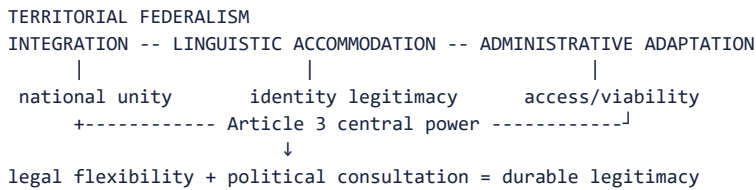
Offer an ex-ante matrix: democratic support, administrative need, fiscal base, transition agreement, minority protection and lower-cost alternatives.

MINI RECAP

Hear identity; test viability; negotiate transition; measure outcomes.

SESSION 15 - FEDERALISM, DEMOCRATIC CONSENT, REGIONALISM AND TERRITORIAL INTEGRITY

VISUAL FIRST



This visual fixes the constitutional sequence before the explanatory detail.

ANSWER-GRABBING LINE

Article 3 is a centralising safety valve: it can absorb regional demands without threatening Union continuity, but bare legality cannot substitute for federal statesmanship.

MUST-WRITE KEYWORDS

territorial federalism; integration; accommodation; centralising safety valve; consultation; federal trust; transition legitimacy

TEACHING AND ANALYSIS

Demand family	Best opening thesis	Evidence core
Why India is a Union of States	The Union is constitutionally prior to State boundaries	Article 1 + Ambedkar explanation + Article 3
Article 3 and State consent	India gives consultation, not consent	President's recommendation, State-legislature reference, non-binding views, Article 4
Cession vs boundary settlement	Internal readjustment and transfer of sovereignty are constitutionally distinct	Berubari Union (1960), Ninth Amendment, 1969 distinction, 100th Amendment
Linguistic reorganisation	Accommodation strengthened the Union more than it weakened it	Dhar, JVP, Andhra, SRC, 1956
J&K 2019	Ladakh carving was upheld; the whole-State-to-UT question was not finally resolved	Reorganisation Act + 2023 INSC 1058 + current MHA status
Smaller-State demand	Statehood is an instrument, not an automatic cure	viability, assets, minorities, democratic support and transition

[FACT] The safest 10-marker structure is provision -> mechanism -> one named case -> verdict. The safest 15-marker structure is thesis -> provision -> mechanism -> case law -> one balance paragraph -> verdict. The safest 20-marker structure adds history, critique and current-status caution.

[ANALYSIS] The main mark-loss in this topic is category confusion: Union versus Territory, Article 2 versus 3, reorganisation versus cession, State legislature versus UT legislature, and constitutional text versus political promise.

Prelims traps to recite before any objective question: Article 2 is not Article 3; State consent is not mandatory; a UT has no proviso consultation right; Article 4 keeps internal reorganisation outside Article 368; cession requires Article 368; the current count is 28 States and 8 UTs.

HOW TO WRITE THE ANSWER PARAGRAPH

Territorial federalism reconciles six pressures: national integration, linguistic-cultural identity, administrative access, economic viability, security and democratic consultation. Parliament's final power prevents constitutional deadlock and denies secessionist vetoes. At the same time, non-binding State views can appear tokenistic when a major change is imposed. The design therefore privileges unity in law but depends on consultation, transparent criteria and negotiated transition for legitimacy.

NAMED EVIDENCE

Articles 1-4; 1956 linguistic settlement; 2000 State creation; Telangana 2014; J&K-Ladakh 2019.

PRELIMS TRAP

Do not duplicate the full Federal System chapter: the focus here is territorial change, not the entire distribution of legislative, administrative and financial power.

MAINS USE

Organise evaluation under validity, legitimacy and prudence; conclude with power plus statesmanship.

MINI RECAP

The Union supplies legal permanence; Article 3 supplies flexibility; consultation supplies political durability.

Exactly **32 original MCQs** precede the PYQ block. Keys rotate ABCDABCDABCDABCDABCDABCDABCD. Every option has a question-specific substantive explanation; every item ends with a distinct examiner trap.

BASIC MCQS / REMEDIATION

Q1. Article 1(1) primarily settles which two issues together?

A. The country's name and the type of polity B. The capital city and the official language C. The citizenship rules and the anthem D. The emergency powers and amendment process

Answer: A.

- **A:** Correct: Article 1(1) joins the constitutional name 'India, that is Bharat' to the description 'Union of States'.
- **B:** Capitals and official languages are supplied through other constitutional or statutory arrangements, not Article 1(1).
- **C:** Citizenship begins in Part II, while national-symbol status is not the paired subject of Article 1.
- **D:** Emergency and amendment powers belong principally to Parts XVIII and XX, not the opening territorial clause.

Examiner trap: Article 1 tests two linked ideas-name and polity-not a miscellaneous pair of national facts.

Q2. Which statement best captures the difference between the Union of India and the Territory of India?

A. The Union of India includes only Parliament, while the Territory of India includes Parliament and the States B. The Union of India refers to the States as federal members, while the Territory of India also includes Union Territories and acquired territories C. The Union of India means the Union executive, while the Territory of India means the Union judiciary D. The two expressions are exact constitutional synonyms

Answer: B.

- **A:** Parliament is an institution; the expression 'Union of India' here identifies the State-members of the federation, not Parliament alone.
- **B:** Correct: the territory of India adds Union Territories and acquired territories to the territories of the States.
- **C:** The distinction concerns federal membership and territorial reach, not a division between executive and judiciary.
- **D:** Article 1(3)'s three-part enumeration prevents the two expressions from being exact synonyms.

Examiner trap: Membership of the federation and reach of Indian sovereignty are overlapping but unequal sets.

Q3. Article 2 is conceptually different from Article 3 because Article 2 deals with

A. renaming existing States B. creation of legislative councils in States C. admission into the Union or establishment of new States not already part of the existing Union D. cession of Indian territory to a foreign State

Answer: C.

- **A:** Renaming an existing State is expressly an Article 3(e) operation.
- **B:** Legislative councils are governed by Article 169, not the admission power.
- **C:** Correct: Article 2 addresses admission into the Union or establishment of new States, conventionally contrasted with Article 3's internal reorganisation.
- **D:** Foreign cession is controlled by Article 368 after *Berubari*, not by Article 2.

Examiner trap: Use the Constitution's verbs before relying on the convenient 'outside/inside' mnemonic.

Q4. Which one of the following is NOT one of the express Article 3 operations?

A. Increasing the area of a State B. Altering the name of a State C. Altering the boundaries of a State D. Ceding accepted Indian territory to a foreign State

Answer: D.

- **A:** Increasing State area is expressly listed in Article 3(b).
- **B:** Changing a State's name is expressly authorised by Article 3(e).
- **C:** Altering State boundaries falls within Article 3(d).
- **D:** Correct: surrender of accepted Indian territory abroad is cession and lies outside Article 3.

Examiner trap: A power to diminish State area is not a power to diminish Indian sovereignty abroad.

Q5. Before an Article 3 bill is introduced in Parliament, what is constitutionally necessary?

A. The prior recommendation of the President B. Prior ratification by at least half the States C. A joint sitting of both Houses D. Approval by the Supreme Court under Article 143

Answer: A.

- **A:** Correct: presidential recommendation is a condition before introduction of an Article 3 Bill.
- **B:** Half-State ratification belongs to specified Article 368 amendments, not territorial reorganisation under Article 3.
- **C:** A joint sitting is neither an introduction condition nor the ordinary mechanism for such a Bill.
- **D:** Article 143 advisory jurisdiction does not replace the President's Article 3 recommendation.

Examiner trap: Do not import Article 368 ratification or Article 143 review into Article 3's introduction stage.

Q6. The legislature of the affected State, when consulted under Article 3, has

A. a suspensive veto that can be overridden only in a joint sitting B. a right to express its views, but no veto over Parliament's final decision C. a binding veto unless the Supreme Court permits otherwise D. a co-equal decision-making role with Parliament

Answer: B.

- **A:** The State legislature has no suspensive veto under the proviso.
- **B:** Correct: it may communicate views, but Parliament may accept, reject or depart from them.
- **C:** Neither State consent nor Supreme Court permission is constitutionally required.
- **D:** Final law-making authority remains with Parliament; the affected legislature is consultative.

Examiner trap: Reference creates a hearing, not a veto; 'consulted' is not 'consenting'.

Q7. Explanation I to Article 3 matters because it states that

A. Union Territories are treated as States for all constitutional purposes B. States and UTs have identical representation in Rajya Sabha C. for clauses (a) to (e), 'State' includes a Union Territory, but not in the proviso requiring legislature-reference D. the President may abolish a State by ordinance

Answer: C.

- **A:** Explanation I does not make Union Territories States for every constitutional purpose.
- **B:** Rajya Sabha representation is governed separately, including by the Fourth Schedule.
- **C:** Correct: inclusion applies to clauses (a)-(e), while the proviso's legislature-reference excludes a Union Territory.
- **D:** Nothing in Explanation I creates an ordinance power to abolish States.

Examiner trap: Explanation I changes meaning between the substantive clauses and the proviso.

Q8. Article 4 keeps reorganisation laws outside Article 368 because such laws are

A. automatically approved by the Supreme Court B. valid only for five years unless renewed C. treated as Money Bills D. not deemed constitutional amendments for the purposes of Article 368

Answer: D.

- **A:** Judicial approval is not what removes these laws from Article 368.
- **B:** Article 4 laws do not lapse after five years.
- **C:** Territorial reorganisation Bills are not converted into Money Bills.
- **D:** Correct: Article 4(2) expressly says they are not deemed constitutional amendments for Article 368.

Examiner trap: Ordinary voting threshold does not make territorial legislation constitutionally trivial.

Q9. The First Schedule is constitutionally important because it

A. lists the States and Union Territories and their territorial extent B. contains the amendment procedure C. allocates Lok Sabha seats among constituencies D. lists the official languages of every State

Answer: A.

- **A:** Correct: the First Schedule identifies States and Union Territories and describes their territories.
- **B:** The amendment procedure is contained in Article 368.
- **C:** Constituency allocation and delimitation are not the First Schedule's central function.
- **D:** Official languages are principally addressed in Part XVII and the Eighth Schedule.

Examiner trap: First Schedule is territorial; Fourth Schedule is Rajya Sabha; Seventh Schedule distributes subjects.

Q10. Which one of the following most accurately states *Berubari Union (1960)*?

A. Any change in a State boundary requires prior consent of that State B. Cession of accepted Indian territory to a foreign State requires a constitutional amendment C. No Indian territory can ever be ceded under the Constitution D. Parliament cannot alter a State's name without Article 368

Answer: B.

- **A:** *Berubari* did not create a State-consent requirement for internal boundary changes.
- **B:** Correct: ceding territory India accepts as its own requires constitutional amendment under Article 368.
- **C:** The Court did not hold that cession was constitutionally impossible; it identified the valid route.
- **D:** State renaming remains possible by Article 3(e) read with Article 4.

Examiner trap: *Berubari* prescribes the route for cession; it does not constitutionally freeze every border.

Q11. The Supreme Court's 1969 boundary-settlement ruling is mainly remembered for holding that

A. every international boundary issue must be referred under Article 143 B. the Union cannot acquire State property
C. boundary settlement or ascertainment without cession does not automatically require Article 368 D. Article 3 and Article 4 are unconstitutional

Answer: C.

- **A:** Article 143 reference is not compulsory for every boundary agreement.
- **B:** The case was not a ruling on Union acquisition of State property.
- **C:** Correct: genuine ascertainment or implementation of a disputed boundary may proceed without Article 368 because no accepted Indian territory is ceded.
- **D:** The judgment did not invalidate Articles 3 or 4.

Examiner trap: Ask whether title is surrendered or an uncertain line is merely identified.

Q12. Which constitutional amendment implemented the India-Bangladesh enclave exchange and related territorial adjustments?

A. The Ninth Constitutional Amendment Act, 1960 B. The Seventh Constitutional Amendment Act, 1956 C. The Thirty-Sixth Constitutional Amendment Act, 1975 D. The 100th Constitutional Amendment Act, 2015

Answer: D.

- **A:** The Ninth Amendment supplied the route for the earlier India-Pakistan Berubari arrangement, not the 2015 enclave exchange.
- **B:** The Seventh Amendment accompanied the 1956 internal reorganisation.
- **C:** The Thirty-Sixth Amendment made Sikkim a full State in 1975.
- **D:** Correct: the 100th Amendment implemented the India-Bangladesh Land Boundary Agreement framework and changed relevant First Schedule entries.

Examiner trap: Ninth Amendment and 100th Amendment concern different India-Pakistan/Bangladesh territorial settlements.

Q13. Which sequence is correct for the linguistic-reorganisation debate?

A. Dhar Commission -> JVP Committee -> Andhra State -> Fazl Ali / SRC -> States Reorganisation Act B. JVP Committee -> Dhar Commission -> Fazl Ali / SRC -> Andhra State -> Seventh Amendment C. Andhra State -> Dhar Commission -> JVP Committee -> Fazl Ali / SRC -> States Reorganisation Act D. Fazl Ali / SRC -> Dhar Commission -> JVP Committee -> Andhra State -> States Reorganisation Act

Answer: A.

- **A:** Correct: Dhar preceded JVP; Andhra came in 1953; the SRC followed; the 1956 Act implemented the settlement.
- **B:** This wrongly places JVP before Dhar and the SRC before Andhra.
- **C:** Andhra cannot precede the 1948 Dhar and 1949 JVP stages.
- **D:** The Fazl Ali Commission was the later response, not the opening event.

Examiner trap: Chronology is the elimination tool: Dhar -> JVP -> Andhra -> Fazl Ali/SRC -> 1956.

Q14. What was the decisive political trigger for the creation of Andhra State in 1953?

A. A Presidential reference under Article 143 B. The prolonged fast and death of Potti Sriramulu C. The demand of the JVP Committee D. The Ninth Amendment Act

Answer: B.

- **A:** No Article 143 reference caused Andhra State's creation.
- **B:** Correct: Potti Sriramulu's fast and death generated the decisive political pressure for Andhra in 1953.
- **C:** The JVP Committee had resisted immediate linguistic reorganisation rather than demanded Andhra.
- **D:** The Ninth Amendment concerned foreign territorial cession, not Andhra.

Examiner trap: The political catalyst and the later legal instrument are related but not identical.

Q15. The States Reorganisation Act, 1956 together with the Seventh Amendment created

A. 16 States and 3 Union Territories exactly as originally recommended by the SRC B. 28 States and 8 Union Territories C. 14 States and 6 Union Territories D. 15 States and 5 Union Territories

Answer: C.

- **A:** The enacted 1956 settlement did not produce 16 States and 3 UTs.
- **B:** The familiar constitutional count is not 15 and 7.
- **C:** Correct: the States Reorganisation Act and Seventh Amendment produced 14 States and 6 Union Territories on 1 November 1956.
- **D:** The Part A-B-C-D categories were abolished rather than retained with 27 States.

Examiner trap: The exact 1956 output is a favourite count trap: 14 States and 6 UTs.

Q16. Which one of the following pairs is correctly matched?

A. Nagaland - Statehood through the Ninth Amendment B. Goa - Statehood through the 100th Amendment C. Telangana - created by the Seventh Amendment D. Sikkim - full Statehood through the 36th Amendment after the brief associate-State experiment

Answer: D.

- **A:** Nagaland became a State in 1963 through the State of Nagaland Act, accompanied by the Thirteenth Amendment; the Ninth Amendment concerned territorial cession.
- **B:** Goa attained Statehood in 1987; the 100th Amendment dealt with the India-Bangladesh land-boundary settlement.
- **C:** Telangana was created under the Andhra Pradesh Reorganisation Act, 2014, not the Seventh Amendment.
- **D:** Correct: the 36th Amendment made Sikkim a full State in 1975 after its brief associate-State arrangement under the 35th Amendment.

Examiner trap: Formation dates and later State-number labels should not be mixed.

Q17. The present practical count of Union Territories as of 7 Sep 2026 is

A. 8 B. 6 C. 7 D. 9

Answer: A.

- **A:** Correct: after the 26 January 2020 merger of Dadra and Nagar Haveli with Daman and Diu, India has eight Union Territories.
- **B:** Six was the Union Territory count produced by the 1956 settlement, not the current count.
- **C:** Seven understates the operative First Schedule list by one.
- **D:** Nine was the short-lived count after the J&K reorganisation and before the 2020 merger.

Examiner trap: Always date the count: 9 UTs briefly existed after 31 October 2019; 8 after 26 January 2020.

Q18. Which sequence of Statehood is correct?

A. Arunachal Pradesh 1963; Nagaland 1972; Tripura 1987 B. Nagaland 1963; Tripura 1972; Arunachal Pradesh 1987
C. Tripura 1963; Arunachal Pradesh 1972; Nagaland 1987 D. Nagaland, Tripura and Arunachal Pradesh all in 1972

Answer: B.

- **A:** Arunachal Pradesh did not become a State before Tripura.
- **B:** Correct: Nagaland (1963) preceded Tripura (1972), which preceded Arunachal Pradesh (1987).
- **C:** Tripura did not precede Nagaland's 1963 Statehood.
- **D:** This reverses both Nagaland-Tripura and Tripura-Arunachal chronology.

Examiner trap: UPSC's 2025 triad turns on 1963, 1972 and 1987.

Q19. Which one of the following correctly describes the 1950 map?

A. Manipur and Tripura were Part B States B. Delhi was the sole Part D territory C. Part A had 9 units, Part B 9, Part C 10, and Andaman and Nicobar Islands alone formed Part D D. Hyderabad was a Part A State

Answer: C.

- **A:** Part A units were former Governors' Provinces, not all princely unions.
- **B:** Part B included major former princely units; it was not limited to centrally administered territories.
- **C:** Correct: the commencement map comprised 9 Part A, 9 Part B, 10 Part C units and the sole Part D territory, Andaman and Nicobar Islands.
- **D:** Manipur and Tripura were Part C units, not Part D.

Examiner trap: Part C and Part D were not synonyms; Andaman and Nicobar Islands alone formed Part D.

Q20. Sikkim's constitutional sequence was

A. full Statehood in 1974 followed by associate status in 1975 B. UT status under the Seventh Amendment followed by Article 3 Statehood C. associate status under the 36th Amendment followed by Statehood under the 35th D. associate-State status through the 35th Amendment in 1974, followed by full Statehood through the 36th Amendment in 1975

Answer: D.

- **A:** Sikkim was not admitted directly as a full State in 1950.
- **B:** The 35th and 36th Amendments, not the 7th and 9th, control Sikkim's sequence.
- **C:** There was an associate-State stage before full Statehood.
- **D:** Correct: the 35th Amendment created associate status in 1974; the 36th Amendment made Sikkim a State in 1975 and removed the temporary arrangement.

Examiner trap: Sikkim's short associate-State phase is the close-option hinge.

Q21. With reference to the India-Bangladesh Land Boundary Agreement, which is correct?

A. The 100th Amendment implemented an exchange in which India transferred 111 enclaves and received 51 B. India transferred 51 enclaves and received 111 under the Ninth Amendment alone C. The First Schedule did not require amendment D. Only West Bengal's territorial entry was affected

Answer: A.

- **A:** Correct: the 100th Amendment implemented the LBA framework; India transferred 111 enclaves and received 51.
- **B:** This reverses the enclave figures and wrongly treats the Ninth Amendment as the complete 2015 route.
- **C:** The constitutional exchange required changes to First Schedule territorial descriptions.
- **D:** Assam, West Bengal, Meghalaya and Tripura were involved; the amendment was not confined to West Bengal.

Examiner trap: Enclave numbers run in opposite directions: India transferred 111 and received 51.

Q22. On the official record located through 7 September 2026, the correct J&K position is

A. Statehood was automatically restored by the 2023 judgment B. J&K remains a UT with Legislature; restoration was directed and assured but had not been legally completed C. J&K and Ladakh have recombined into a State D. Ladakh is a State without Legislature

Answer: B.

- **A:** The 2023 judgment urged early restoration but did not itself convert J&K into a State.
- **B:** Correct: the operative position checked through 7 September 2026 remains J&K as a UT with Legislature, with restoration not yet completed by operative law.
- **C:** The 2019 creation of two UTs has not been reversed by a recombination law.
- **D:** Ladakh remains a Union Territory without Legislature, not a State.

Examiner trap: Judicial direction or political assurance is not an appointed-day notification.

Q23. In the 2023 Article 370 judgment, the Supreme Court

A. held every whole-State-to-UT conversion valid B. restored J&K Statehood with immediate effect C. upheld carving out Ladakh, treated State views as recommendatory, but did not finally decide the broader whole-State-to-UT issue because of the restoration assurance D. held Article 3 inapplicable to Union Territories

Answer: C.

- **A:** The Court did not hold all State-to-UT conversion categorically unconstitutional.
- **B:** It did not restore J&K Statehood by judicial decree on judgment day.
- **C:** Correct: it upheld Ladakh's carving under Article 3 and left the broader whole-State conversion issue unresolved in light of the restoration assurance.
- **D:** It did not convert State-legislature views into a binding veto.

Examiner trap: The 2023 judgment's narrow Ladakh holding must not be expanded into a universal conversion rule.

Q24. Which criterion set is most defensible for evaluating a smaller-State demand?

A. Population and language alone B. Political mobilisation alone C. Consent of the parent State alone D. Administrative access, fiscal viability, transition costs, resource division, minority safeguards, democratic support and inter-State effects

Answer: D.

- **A:** Identity alone cannot test fiscal or institutional viability.
- **B:** Population and area alone omit administration, resources, minorities and transition.
- **C:** Party advantage is constitutionally and analytically inadequate.
- **D:** Correct: democratic support, access, fiscal capacity, assets, minorities, security and alternatives form a defensible decision matrix.

Examiner trap: A Statehood demand needs both democratic legitimacy and a workable institutional transition.

Q25. Which one of the following is correctly matched?

A. United Provinces -> Uttar Pradesh, 1950 B. Mysore -> Tamil Nadu, 1973 C. Orissa -> Odisha, 2000 D. Pondicherry -> Lakshadweep, 2006

Answer: A.

- **A:** Correct: United Provinces was renamed Uttar Pradesh in 1950.
- **B:** Madras became Tamil Nadu in 1969, not 1973.
- **C:** Mysore became Karnataka in 1973, not 1969.
- **D:** Orissa became Odisha in 2011, not 2006.

Examiner trap: Renaming years are designed for swaps: Tamil Nadu 1969, Karnataka 1973, Odisha 2011.

Q26. The enacted result of the 1956 settlement was

A. 16 States and 3 UTs B. 14 States and 6 UTs C. 28 States and 8 UTs D. 9 Part A and 9 Part B States

Answer: B.

- **A:** Sixteen States and three UTs is not the enacted 1956 count.
- **B:** Correct: the 1956 Act and Seventh Amendment produced 14 States and 6 Union Territories and ended the Part A-B-C-D structure.
- **C:** Twenty-eight States and eight UTs is the current post-2020 count, not the 1956 settlement.
- **D:** Nine Part A and nine Part B units describe part of the 1950 transitional classification.

Examiner trap: Do not confuse the Commission's recommendations with the enacted 1956 map.

Q27. Which statement is correct about Ladakh's current demand?

A. Statehood was granted by the PIB release of September 2025 B. Sixth Schedule status automatically followed the 2025 regulations C. Official PIB releases recorded Statehood/Sixth-Schedule demands and continuing safeguard dialogue, but no territorial-status change D. Ladakh became a State through the 100th Amendment

Answer: C.

- **A:** A political demand does not itself amend the First Schedule.
- **B:** The 2023 judgment did not create Ladakh Statehood.
- **C:** Correct: Statehood or constitutional-protection demands remain political claims unless translated into operative constitutional or statutory change.
- **D:** The Article 3 proviso does not give a UT legislature a constitutional veto.

Examiner trap: Demand, negotiation, Bill, enactment and commencement are five different legal statuses.

Q28. Which statement best explains why Article 3 is often cited as proof of India's strong-Centre bias?

A. States cannot legislate on the Concurrent List B. every State law needs Presidential approval C. Rajya Sabha seats are equal across States D. Parliament may reorganise States without needing their consent

Answer: D.

- **A:** Article 3 does not abolish the constitutional distribution of powers.
- **B:** The President cannot reorganise States by personal decree; Parliament must enact the law.
- **C:** A State legislature is consulted, but it cannot block the measure.
- **D:** Correct: Parliament may alter a State's area, boundary or name without its consent, showing pronounced central power over the internal map.

Examiner trap: Strong-Centre bias here means control of territorial identity, not absence of federalism.

Q29. Article 4 expressly enables a law under Articles 2 or 3 to amend which Schedules as necessary?

A. The First and Fourth Schedules B. The Fifth and Sixth Schedules C. The Seventh and Eighth Schedules D. The Ninth and Tenth Schedules

Answer: A.

- **A:** Correct: Article 4 expressly permits consequential amendment of the First and Fourth Schedules.
- **B:** The Fifth and Sixth Schedules concern scheduled and tribal-area governance.
- **C:** The Seventh distributes legislative subjects and the Eighth lists recognised languages.
- **D:** The Ninth and Tenth Schedules concern protected laws and anti-defection, not Article 4's express pair.

Examiner trap: Article 4's express schedule pair is First + Fourth.

Q30. Parliament materially amends an Article 3 Bill after the affected State legislature has sent its views. Which statement is correct?

A. The Bill automatically lapses B. A fresh State-legislature reference is not constitutionally required for every amendment C. The State legislature acquires a veto over the amended clauses D. The Supreme Court must approve the amended Bill before passage

Answer: B.

- **A:** Parliamentary alteration after consultation does not automatically lapse the Bill.
- **B:** Correct: the Constitution does not require a fresh State-legislature reference for every parliamentary amendment.
- **C:** The affected State never acquires a veto over the original or amended proposal.
- **D:** Pre-enactment Supreme Court approval is not an Article 3 procedural condition.

Examiner trap: The State comments on the referred proposal; it does not co-draft every parliamentary amendment.

Q31. Historical polity texts list conquest among modes of territorial acquisition. A current answer should add that

A. conquest remains unrestricted whenever Parliament passes an Article 3 law B. the President may validate acquisition by ordinance C. contemporary international law and the UN Charter sharply constrain acquisition by force D. acquired territory must immediately become a full State

Answer: C.

- **A:** Article 3 cannot legalise forcible external acquisition, and modern international law rejects conquest as an unrestricted title.
- **B:** A presidential ordinance cannot cure an unlawful use of force or settle sovereign title by itself.
- **C:** Correct: historical textbook lists must be qualified by the UN Charter prohibition on aggressive territorial acquisition.
- **D:** Article 1 recognises acquired territory as distinct; it need not immediately become a full State.

Examiner trap: Historical modes of acquisition must be filtered through contemporary international law.

Q32. State of West Bengal v. Union of India is relevant to this topic chiefly because it

A. created Andhra State B. authorised foreign cession under Article 3 C. made State consent compulsory D. supports the strong-Centre proposition that Indian States are not classical compact-sovereigns

Answer: D.

- **A:** The case did not require State consent for Article 3 reorganisation.
- **B:** It was not the controlling foreign-cession ruling; *Berubari* fills that role.
- **C:** It did not make India a treaty federation.
- **D:** Correct: it denied classical coordinate sovereignty to States and supports the strong-Union background of territorial federalism.

Examiner trap: Use *West Bengal v Union* for State sovereignty status, not as a substitute for Article 3 or *Berubari*.

PYQS AND ANSWER PRACTICE

PYQ 1. Prelims 2025, GS Paper I, Question 52 - verbatim official-paper verification

Consider the following pairs:

State	Description
I. Arunachal Pradesh	The capital is named after a fort, and the State has two National Parks
II. Nagaland	The State came into existence on the basis of a Constitutional Amendment Act
III. Tripura	Initially a Part 'C' State, it became a centrally administered territory with the reorganization of States in 1956 and later attained the status of a full-fledged State

How many of the above pairs are correctly matched?

(a) Only one (b) Only two (c) All the three (d) None

Official Set-A answer: (c) All the three.

- **Pair I:** Itanagar is named after Ita Fort; Arunachal Pradesh has Namdapha and Mouling National Parks.
- **Pair II:** The official key accepts the pair. Nagaland's settlement involved the State of

Nagaland Act, 1962 and the Constitution (Thirteenth Amendment) Act, 1962, which inserted Article 371A.

- **Pair III:** Tripura was a Part C unit, became a Union Territory in the 1956 arrangement and attained full Statehood in 1972.

Why this earns marks: it follows the official key, tests every pair independently, and explains why

How to improve this answer: Reproduce the three-pair logic, distinguish Nagaland's Statehood Act from the accompanying Thirteenth Amendment, and explicitly anchor the result to the official UPSC key.

an ordinary Statehood Act and an accompanying constitutional amendment are not mutually exclusive.

PYQ 2. Mains 2018, GS Paper I, Question 12 - owner-verified exact text

Question: Discuss whether formation of new states in recent times is beneficial or not for the economy of India. (15 marks, 250 words)

Model solution

State formation can improve economic governance, but the gain follows from **institutional capacity and transition design**, not from small size by itself.

Potential benefits. A smaller unit can reduce administrative distance, reveal region-specific constraints and align budgets with local geography. **Chhattisgarh** obtained a dedicated policy arena for a large tribal-mineral region; **Uttarakhand** could focus on mountain roads, tourism and disaster risk; **Jharkhand** acquired a separate budgetary platform for mineral-rich but socially deprived districts; **Telangana** gained autonomous policy priority after 2014. These cases show how Statehood can improve problem recognition, accountability and capital allocation.

Costs and qualifications. New capitals, High Courts, cadres and departments create large fixed costs. Weak revenue capacity may increase grant dependence. Division of debt, employees, institutions, power and river water can generate prolonged disputes: the **Andhra Pradesh-Telangana** transition illustrates capital, asset and water frictions. Statehood also did not automatically remove **Jharkhand's political instability**, while Uttarakhand's development model remains constrained by fragile Himalayan ecology.

Thus, the relevant test is not "smaller equals richer" but whether reorganisation corrects neglect, improves access and is supported by viable finances, accountable institutions and a negotiated transition. New States can be economically beneficial, but Article 3 is a constitutional instrument, not a self-executing development policy.

Why this earns marks: the answer follows the economic directive, uses four named State examples,

How to improve this answer: Use the exact economic demand, organise gains and costs under capacity, fiscal viability and transition, and add a measurable indicator rather than assuming smallness proves benefit.

links each example to a mechanism, presents transition costs and ends with a conditional verdict.

PYQ 3. Mains 2022, GS Paper I, Question 11 - owner-verified exact text

Question: The political and administrative reorganization of states and territories has been a continuous ongoing process since the mid-nineteenth century. Discuss with examples. (15 marks, 250 words)

Model solution

India's political map has never been static; it has been repeatedly remade by colonial administration, national integration, linguistic accommodation, security settlements and developmental demands.

Colonial phase. The **1858 Crown takeover**, later provincial adjustments and the **1905 partition and 1911 reunification of Bengal** showed that boundaries could be administrative instruments with large political consequences. The Government of India Acts also altered provincial structures and degrees of autonomy.

Integration and transition. After 1947, accession and merger integrated princely States through different routes: **Junagadh, Hyderabad and Jammu and Kashmir** demonstrate plebiscitary, coercive and accession-under-invasion complexities. The 1950 **Part A/B/C/D** classification was therefore a transitional constitutional map, not a final settlement.

Linguistic and later reorganisation. Andhra (1953) made language unavoidable. The **Fazl Ali Commission**, while rejecting "one language-one State", led to the **States Reorganisation Act, 1956 and Seventh Amendment**, creating 14 States and 6 UTs. Later changes responded to multiple drivers: Maharashtra-Gujarat (1960), Nagaland (1963), Haryana (1966), North-Eastern Statehood (1972 and 1987), Sikkim (1975), the three States of 2000, Telangana (2014), J&K-Ladakh (2019) and the DNH-DD UT merger (2020).

The continuity lies in the recurring search for congruence between identity, administrative viability and national unity. Article 3 constitutionalised that adaptability, though democratic legitimacy still depends on consultation and fair transition.

Why this earns marks: it respects the mid-nineteenth-century time span, uses chronology as analysis,

How to improve this answer: Open with a mid-nineteenth/colonial boundary example, then structure colonial, integration, linguistic and post-1956 phases so continuity is demonstrated across the full period.

names examples across every phase and closes by identifying the continuing constitutional mechanism.

Six original Mains questions with complete model solutions

Original Mains model 1 - 10 marks: Distinguish the 'Territory of India' from the 'Union of India'. Why does the distinction matter?

Model answer. [CLAIM] The two expressions are related but not identical. [EVIDENCE] Article 1 and standard polity doctrine treat the Union of India as the States taken as federal members, whereas the Territory of India includes the territories of the States, the Union Territories, and such territories as may be acquired. [MECHANISM] This matters because States share constitutionally distributed powers with the Union, while Union Territories are centrally administered units under Articles 239-241 and acquired territories may await internal constitutional placement. [ANALYSIS] The distinction explains why a UT belongs to India without becoming a full federal partner, and why the First Schedule can list both States and UTs while still preserving their unequal constitutional status. [LIMIT] The distinction is structural, not emotional; one should not collapse sovereignty with federal membership. [VERDICT] The Union of India is the federation's membership core; the Territory of India is the wider constitutional space over which Indian sovereignty extends. **Why this earns marks:** it defines both expressions, links them to operative constitutional consequences, and avoids the common synonym trap.

How to improve this answer: Add a compact Union-versus-Territory table and one First-Schedule consequence while keeping detailed UT administration outside this topic.

Original Mains model 2 - 10 marks: Distinguish cession of Indian territory from settlement of a boundary dispute.

Model answer. [CLAIM] The Constitution treats cession and boundary settlement differently because only the former parts with accepted sovereign territory. [EVIDENCE] *Berubari Union (1960)* held that ceding accepted Indian territory to a foreign State cannot be done under Article 3 and requires constitutional amendment under Article 368. [MECHANISM] Cession changes the sovereign content of the Constitution's territorial ledger. By contrast, the Supreme Court's later 1969 ruling held that where the issue is ascertainment or implementation of an existing disputed boundary, and not transfer of accepted Indian territory, executive action need not be preceded by Article 368. [ANALYSIS] The test is not whether another country is involved, but whether India is surrendering what it accepts as its own territory. [LIMIT] A boundary-settlement label cannot disguise actual cession. [VERDICT] Cession changes sovereignty and needs amendment; boundary settlement clarifies or implements an existing line and need not. **Why this earns marks:** it identifies the controlling test, uses the safely verified case/principle and converts the distinction into a usable constitutional rule.

How to improve this answer: State the accepted-territory test and sequence *Berubari Union (1960)*, *Maganbhai* and the 100th Amendment without implying that the Ninth Amendment completed every contemplated transfer.

Original Mains model 3 - 15 marks: 'India is an indestructible Union of destructible States.' Examine with special reference to Article 3.

Model answer. [CLAIM] The phrase captures the asymmetry built into Indian federalism: the Union's continuity is entrenched, but State boundaries are not. [EVIDENCE] Article 1 names India a Union of States, while Article 3 empowers Parliament to form new States, increase or diminish their area, alter boundaries and alter names. [MECHANISM] An Article 3 bill requires the President's prior recommendation and reference to the affected State legislature for views, but those views are non-binding. Article 4 then keeps the reorganisation law outside Article 368, allowing ordinary-majority change. [ANALYSIS] This makes the Indian federation unlike a compact federation such as the United States, where State consent is structurally stronger. Yet the same flexibility enabled linguistic reorganisation, small-State creation and administrative adaptation without constitutional deadlock. [EVIDENCE] Andhra (1953), the 1956 settlement, and later creations such as Chhattisgarh, Jharkhand and Telangana show the practical utility of this power. [LIMIT] The design can create a democratic-consent deficit when major territorial change proceeds over sharp regional opposition. [VERDICT] India is indestructible because no State can claim a right to continued boundaries or secession; the States are destructible only in the constitutional sense that Parliament may reorganise them, not in the sense of lawless central arbitrariness. **Why this earns marks:** it ties the famous formula to the exact procedural mechanics of Article 3 and balances national flexibility with federal criticism.

How to improve this answer: List the Article 3 operations and UT/proviso nuance precisely, then use only a short qualified comparative-federalism contrast tied to consent.

Original Mains model 4 - 15 marks: Demands for smaller States should be decided through governance criteria, not identity alone. Discuss.

Model answer. [CLAIM] Identity can establish democratic urgency, but it cannot by itself prove that a new State will govern better. [EVIDENCE] Uttarakhand, Chhattisgarh and Jharkhand were created in 2000 to address distinct regional geographies and developmental claims; Telangana followed in 2014 after sustained regional mobilisation. [ANALYSIS] Smaller units may improve administrative access, policy focus and accountability. [QUALIFICATION] Statehood also creates new capital, cadre and institutional costs; weak revenue bases can deepen grant dependence; water, power, debt and assets can generate inter-State disputes; and a new regional majority may create a new minority. Jharkhand's institutional instability and Andhra-Telangana transition disputes show that Statehood is not a self-executing development policy. [CURRENT EVIDENCE] J&K restoration remains a law-versus-assurance test: the Supreme Court urged early restoration, but the official-source check located no operative restoration law or appointed-day notification through 7 September 2026. [VERDICT] Parliament should use Article 3 after transparent viability studies, broad consultation and negotiated transition, treating Statehood as a governance instrument rather than a reward for mobilisation. **Why this earns marks:** it uses four named examples, connects each claim to a mechanism, includes present debates and supplies operational decision criteria.

How to improve this answer: Turn the criteria into an ex-ante decision matrix and add one ex-post counterexample showing why identity or size alone cannot guarantee capacity.

Original Mains model 5 - 20 marks: Linguistic reorganisation strengthened rather than weakened the Indian Union. Critically examine.

Model answer. [CLAIM] Linguistic reorganisation ultimately strengthened the Indian Union because it channelled identity into constitutional politics rather than leaving it outside the system, though not without centralising tensions and new sub-regional claims. [EVIDENCE] The initial hesitation of the Dhar Commission and the JVP Committee reflected a real fear that language-based States might embolden fragmentation. The creation of Andhra in 1953 after Potti Sriramulu's death showed that these demands could not simply be suppressed. [EVIDENCE] The Fazl Ali / States Reorganisation Commission accepted language as a major organising principle but rejected one language-one State and balanced it with viability, unity and welfare. The resulting States Reorganisation Act, 1956 and Seventh Amendment restructured India without dismantling its constitutional framework. [MECHANISM] By aligning administration with language in many cases, the Union reduced alienation, improved representational legitimacy and absorbed regional mobilisation into parliamentary and electoral channels. [ANALYSIS] Later developments - Nagaland, Meghalaya, Mizoram, Goa, Telangana and smaller-State formations in 2000 - show that Article 3 remained an accommodation device, not merely a linguistic tool. [LIMIT] Reorganisation did not end regionalism; it often displaced it into fresh internal claims for smaller units, capitals or autonomous protections. Nor can every present-day demand be justified by language alone. [VERDICT] Linguistic reorganisation did not dissolve the Union; it made the Union governable by recognising identity inside the Constitution. Its success, however, depended on combining language with viability, asymmetry and central constitutional control. **Why this earns marks:** it uses chronology as argument, gives both the fear and the outcome, and converts the 1956 settlement into a broader federalism verdict.

How to improve this answer: Create a separate criticism paragraph on sub-regionalism, capitals and minority protection, then return to the SRC's multi-factor test for the final verdict.

Original Mains model 6 - 20 marks: Does Article 3 reconcile national unity with democratic consent, or does it privilege unity at the expense of federal trust? Critically examine.

Model answer. [CLAIM] Article 3 reconciles unity and democracy only partially: it was designed to privilege the Union's continuity, and democratic consent enters the structure as consultation rather than as a State veto. [EVIDENCE] The President must recommend the bill and refer it to the affected State legislature for views, but Parliament is not bound by those views. Article 4 then keeps the resulting law outside Article 368, reinforcing flexibility. [MECHANISM] This makes Article 3 a nation-preserving safety valve. The Union can respond to secessionary pressures, viability problems, linguistic claims and administrative demands without constitutional paralysis. Andhra, the 1956 settlement, State creation in 2000 and Telangana in 2014 are evidence of this accommodative capacity. [ANALYSIS] Yet the same structure can weaken trust. If an affected State's legislature can only advise and not co-decide, consultation may appear symbolic in politically high-stakes reorganisations. The conversion of a former State into Union Territories in 2019 intensified this anxiety. [EVIDENCE] *State of West Bengal v Union of India* reinforces the strong-Centre reading, while the continuing democratic force of federalism is better captured by the political need for negotiated legitimacy and, in the broader constitutional order, by Bommai's basic-feature floor. [LIMIT] A compact-federation standard is not fully appropriate for India, whose Constitution deliberately rejected a treaty-union model. [VERDICT] Article 3 does not produce symmetrical federal consent; it privileges unity structurally, but can still generate democratic legitimacy when used through negotiation, transparency and accommodation rather than through bare majoritarian power. **Why this earns marks:** it neither romanticises consent nor demonises unity, and it uses the text, history and case law to produce a graded verdict rather than a slogan.

How to improve this answer: Separate validity, legitimacy and prudence; state the 2023 holding precisely-Ladakh upheld, whole-State-to-UT conversion not finally decided-and propose stronger consultation.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

A. Explanation I is a favourite close-option trap. In Article 3, 'State' includes Union Territories for clauses (a) to (e), but not for the proviso requiring reference to a State legislature. This is why Parliament may restructure UTs without a comparable constitutionally mandated consultation step.

B. The First Schedule and Fourth Schedule do different jobs. The First Schedule tracks territorial units; the Fourth Schedule tracks Rajya Sabha seat allocation. Article 4 lets a reorganisation law adjust both together.

C. Ordinary law is not a lesser constitutional act in this chapter. An Article 3 law is ordinary in voting threshold, but constitutional in subject matter. That is why it can lawfully redraw the map while still remaining outside Article 368.

D. Berubari Union (1960) is not just a territorial case. It also teaches exam method: identify whether the question is about internal diminution, cession, or interpretive use of a case in another topic such as the Preamble.

E. West Bengal is about constitutional status, not map procedure. Use it to show that States are not classical sovereigns; do not use it to answer the cession route or Article 3 procedure.

F. J&K current status must be written in two layers. Layer one is operative law: UT with Legislature. Layer two is political-constitutional promise and judicial direction: Statehood restoration at the earliest, still legally pending on the 7 Sep 2026 check.

G. The whole-State-to-UT issue remains qualified. The 2023 judgment upheld carving out Ladakh but did not finally decide the broader conversion issue because of the restoration assurance.

H. Linguistic reorganisation was not a surrender to separatism. The 1956 settlement shows that territorial flexibility can be a nation-building tool.

I. Renaming is constitutionally small but exam-relevant. Article 3(e) handles both major territorial restructuring and nomenclature changes.

J. Current demands are not current law. A memorandum, protest, committee dialogue, assurance or Bill does not change the First Schedule.

K. Viability must accompany identity. Fiscal capacity, assets, water, minorities and transition institutions decide whether a smaller State can govern.

L. Current affairs should update status, not replace doctrine. The stable core remains Articles 1-4; Polity 25 owns Articles 239-241. Live sources here only refresh the 28/8 count, J&K restoration status and current Statehood demands.

CONSOLIDATED REGISTER NOTES

Controlled answer-line bank

- OPENING:** India is a constitutionally indestructible Union whose internal State map remains adaptable under Articles 1-4; the phrase 'indestructible Union of destructible States' is an analytical formula, not constitutional text.
- ARCHITECTURE:** Articles 1-4 move from identity and territorial composition, to external admission or establishment, to internal reorganisation, and finally to the ordinary-law consequences that amend the First and Fourth Schedules.
- PROCEDURE:** Article 3 constitutionalises consultation, not consent: prior presidential recommendation and State-legislature reference are mandatory where the proviso applies, views do not bind Parliament, no fresh reference is required for every amendment, and a Union Territory has no equivalent proviso right.
- CESSION:** The sovereignty test separates cession from boundary settlement: surrender of accepted Indian territory requires Article 368, while genuine ascertainment or implementation of a disputed boundary may proceed without constitutional amendment.
- LINGUISTIC:** Linguistic reorganisation strengthened the Union by constitutionalising identity, but Fazl Ali's rejection of 'one language-one State' kept language subordinate to unity, viability and welfare.
- FEDERAL:** Article 3 is a centralising safety valve: its flexibility can absorb regional demands, but legitimacy depends on consultation, transparency and negotiated transition because affected States possess no

constitutional veto.

7. **CURRENT:** As verified on the located official record through 7 September 2026, India has 28 States and 8 Union Territories; J&K remains a UT with Legislature and Ladakh a UT without Legislature, no later official status-changing notification or order was located, and Ladakh Statehood/Sixth-Schedule demands remain dialogue rather than law.
8. **FINAL:** India's territorial Constitution works best when parliamentary flexibility is joined to federal statesmanship: unity supplies the legal power, while democratic consultation supplies the legitimacy.

Articles 1-4: complete constitutional spine

Article	Recall line	Main trap
1	India, that is Bharat, is a Union of States; territory = States + UTs + acquired territory	Union of India is narrower than territory of India
2	Admit or establish a new State not already within the Union	Not internal reorganisation
3	Form, enlarge, diminish, alter boundary or rename existing units	State views are not consent; foreign cession excluded
4	Amend First/Fourth Schedules and add consequences by ordinary law	Not deemed an Article 368 amendment

Rapid thesis: the Union is indestructible; the internal map is adaptable.

India, Union and territory

- Article 1 says Union of States, not Federation of States.
- Ambedkar: no compact among sovereign States and no secession right.
- Union of India = States as federal members.
- Territory of India = States + UTs + acquired territories.
- First Schedule is the constitutional territorial ledger.
- Article 1(3)(c) accommodates acquisition but does not prescribe its international-law mode.
- Contemporary law sharply qualifies historical textbook references to conquest.

Article 2 versus Article 3

ARTICLE 2 = NEW ENTRY / ESTABLISHMENT FROM OUTSIDE THE EXISTING UNION

ARTICLE 3 = INTERNAL READJUSTMENT OF EXISTING STATES / TERRITORIES

- Telangana, Chhattisgarh, Haryana and renamings -> Article 3.
- Acquisition of sovereign title and admission as a State are distinct questions.

Article 3 procedure

1. Proposal falls within clause (a), (b), (c), (d) or (e).
2. President's recommendation before introduction.
3. Reference to affected State legislature where area, boundary or name is affected.
4. Views within specified or extended time.
5. Views are recommendatory; Parliament is not bound.
6. No fresh reference for every parliamentary amendment.
7. Passage, assent and Article 4 consequences.

Federal rule: a State has a constitutional voice, not a veto.

State and UT nuance

- Explanation I: State includes UT in clauses (a)-(e).
- Explanation I: State excludes UT in the proviso.
- A UT therefore has no Article 3 reference entitlement, even if it has a legislature.
- Explanation II: Parliament can form a State or UT by combining parts of States/UTs.
- Ownership firewall: Topic 05 uses UT classifications only; Topic 25 owns Articles 239-241 and legislature/administrator doctrine.

Article 4 consequences

- First Schedule: names and territorial descriptions.
- Fourth Schedule: Rajya Sabha seat allocation.
- Supplemental/incidental/consequential matters: representation and transition.
- Ordinary process and simple majority of members present and voting.
- No Article 368 deeming and no State ratification requirement.

Integration of princely States

- Textbook convention: 552 princely States within India's geographical boundaries; 549 joined. Historical totals vary by counting date and category.
- Hyderabad -> police action; Junagadh -> referendum; J&K -> Instrument of Accession.
- Patel and V.P. Menon are central figures.
- Integration established one sovereignty; reorganisation rationalised administration.

The 1950 map

Category	Number	Anchors
Part A	9	Former Governors' Provinces; Bombay, Madras, United Provinces
Part B	9	Former princely units; Hyderabad, J&K, Mysore, Rajasthan
Part C	10	Delhi, Himachal Pradesh, Manipur, Tripura among centrally administered units
Part D	1	Andaman and Nicobar Islands

Traps: Manipur/Tripura = Part C; Hyderabad = Part B; Bombay = Part A; A&N = sole Part D.

Linguistic reorganisation

- Dhar Commission, 1948 -> administrative convenience, not language.
- JVP Committee, 1948-49 -> resisted language as immediate basis.
- Andhra, October 1953 -> first linguistic State; Potti Sriramulu catalyst.
- Fazl Ali/SRC, 1953-55 -> accepted language; rejected one language-one State.
- Four tests: unity/security; linguistic-cultural homogeneity; viability; welfare/planning.
- 1956 Act + Seventh Amendment -> 14 States + 6 UTs.

Verdict: linguistic recognition strengthened unity because it was qualified by viability and national integration.

The 1956 settlement: named effects

- Kerala = Travancore-Cochin + Malabar + Kasaragod.
- Andhra Pradesh = Andhra + Telugu-speaking Hyderabad area.
- Madhya Pradesh absorbed Madhya Bharat, Vindhya Pradesh and Bhopal.
- Bombay absorbed Saurashtra and Kutch.
- Mysore absorbed Coorg.
- Punjab absorbed PEPSU.
- Rajasthan absorbed Ajmer.
- Laccadive-Minicoy-Amindivi became a UT.

State-creation chronology

Cluster	Sequence
1960s	Maharashtra/Gujarat (1960) -> Nagaland (1963) -> Haryana (1966)
1970s	Himachal (1971) -> Manipur/Tripura/Meghalaya (1972) -> Sikkim associate (1974), State (1975)
1987	Mizoram -> Arunachal Pradesh -> Goa
2000	Chhattisgarh -> Uttarakhand -> Jharkhand
Recent	Telangana (2014) -> J&K/Ladakh UTs (2019) -> DNH-DD merger (2020)

2025 Prelims triad: Nagaland 1963; Tripura 1972; Arunachal Pradesh 1987.

Renaming and incorporation

- United Provinces -> Uttar Pradesh (1950).
- Madras -> Tamil Nadu (1969).
- Mysore -> Karnataka (1973).
- Laccadive-Minicoy-Amindivi -> Lakshadweep (1973).
- Uttaranchal -> Uttarakhand (2006).
- Pondicherry -> Puducherry (2006).
- Orissa/Oriya -> Odisha/Odia (2011).
- Tenth Amendment -> Dadra and Nagar Haveli.
- Twelfth Amendment -> Goa, Daman and Diu.
- Fourteenth Amendment -> Puducherry.

Cession and boundary settlement

ACKNOWLEDGED INDIAN TERRITORY SURRENDERED?

YES -> CESSION -> ARTICLE 368

NO, ONLY TRUE DISPUTED LINE IDENTIFIED -> EXECUTIVE SETTLEMENT MAY SUFFICE

- *Berubari Union (1960)*: Article 3 diminution does not include foreign cession.
- Ninth Amendment: constitutional route; do not claim every contemplated transfer immediately operated.
- Supreme Court 1969: genuine boundary settlement without cession need not use Article 368.
- Decisive variable = legal title and surrender of sovereignty.

India-Bangladesh LBA

- Radcliffe 1947 -> Bagge 1950 -> Nehru-Noon 1958 -> Ninth Amendment 1960.
- LBA 1974 -> Protocol 2011 -> 100th Amendment 2015.
- India transferred 111 enclaves; received 51.
- First Schedule entries: Assam, West Bengal, Meghalaya, Tripura.
- Exchange effective from midnight of 31 July 2015.

J&K 2019 and 2023 judgment

- Reorganisation effective 31 October 2019.
- J&K = UT with Legislature; Ladakh = UT without Legislature.
- State legislature's Article 3 views are recommendatory.
- Ladakh carving upheld under Article 3(a) + Explanation I.
- Whole-State-to-UT question not finally determined because Statehood restoration was assured.
- Restoration directed at the earliest and as soon as possible.
- Justice Khanna: State-to-UT conversion has grave federal consequences.

Current-law control: 7 September 2026

- MHA still identifies J&K as a UT with Legislature.
- MHA still identifies Ladakh as a UT without Legislature.
- Current count = **28 States and 8 UTs**.
- J&K Statehood restoration was judicially urged; no operative law or appointed-day notification restoring Statehood was located in the official-source check through 7 September 2026.
- Demand, assurance, committee dialogue and judicial direction are not enacted reorganisation.

Smaller-State evaluation

Test	Question
Democratic support	Is support broad across affected communities?
Administrative access	Will service capacity genuinely improve?
Fiscal viability	Can the proposed State sustain core expenditure?
Asset transition	How will debt, employees, water, power, institutions and capital be divided?
Minority protection	Will a new majority create a vulnerable minority?
Alternatives	Can autonomy or devolution solve the grievance at lower cost?

Verdict: Statehood is a governance instrument, not an automatic reward for mobilisation.

Federal debate

Critique	Reply	Qualified conclusion
No State veto	India is not a compact of sovereign States	Final authority is necessary; negotiated use is more legitimate
UT gets no proviso right	Flexibility permits complex territorial solutions	Political consultation should exceed the minimum
Partisan misuse is possible	Parliament remains nationally accountable	Publish criteria and viability studies
Reorganisation can create distrust	It has absorbed identity demands	Transition justice determines success

PYQ routes and last-minute traps

- Prelims 2025 GS-I Q52 -> official answer C, all three pairs.
- Mains 2018 GS-I Q12 -> economic effects of recent State formation.
- Mains 2022 GS-I Q11 -> continuous political and administrative reorganisation since the mid-nineteenth century.
- Andhra 1953 = first linguistic State.
- Fazl Ali rejected one language-one State.
- 1956 = 14 States, 6 UTs.
- Sikkim: associate 1974, State 1975.
- Cession needs Article 368; genuine boundary settlement may not.
- Current count = 28 States, 8 UTs.
- No later dated official notification or order restoring J&K Statehood was located in the source sweep through 7 September 2026.

Four answer spines

Article 3 federalism

Union not compact -> President recommendation -> State views, no veto
-> Article 4 ordinary law -> centralisation critique
-> flexibility reply -> negotiated-use verdict

Linguistic reorganisation

Dhar -> JVP -> Andhra 1953 -> Fazl Ali qualified acceptance
-> 1956 settlement -> integration gains -> remaining disputes -> qualified success

Cession

Internal Article 3 change -> Berubari Union (1960) excludes cession
-> Ninth Amendment -> 1969 boundary distinction
-> LBA + 100th Amendment -> sovereignty-based verdict

Smaller States

Identity/development trigger -> Article 3 mechanism
-> access/accountability gains -> fiscal/asset/minority risks
-> current status control -> criteria-based verdict

COMPLETE TOPIC ASCII MASTER FLOW DIAGRAM

ASCII MASTER FLOW - PANEL 1/12: Articles 1-4: the territorial power hierarchy

ARTICLE 1

India, that is Bharat = Union of States
territory = States + Union territories + acquired territories

ARTICLE 2

Parliament admits into Union or establishes new States

ARTICLE 3

Parliament forms new States and alters area, boundary or name

ARTICLE 4

consequential First/Fourth Schedule changes and supplemental provisions
laws under Articles 2 and 3 are not amendments under Article 368

FIRST SCHEDULE = living ledger of States and Union territories

PRINCIPLE: States have constitutional status, but no right to secede.

MUST REMEMBER: Articles 1-4 and the First/Fourth Schedules separate territorial identity,
admission or establishment, internal reorganisation and consequential schedule changes
within an indestructible Union.

ASCII MASTER FLOW - PANEL 2/12: Article 3 procedure: consultation without a State veto

PRESIDENT'S RECOMMENDATION REQUIRED

BILL affects area, boundary or name of a State?

--- YES -> President refers bill to affected State legislature
| --- specifies time for expressing views
| --- may extend that time
| --- Parliament is not bound by those views
--- NO State affected -> proviso referral does not arise in that form

PARLIAMENT passes by ordinary legislative majority

PRESIDENTIAL ASSENT -> territorial and Schedule changes

State view is required consultation, not consent.

ASCII MASTER FLOW - PANEL 3/12: Article 2, Article 3 and foreign-territory transfer are distinct

QUESTION

CONSTITUTIONAL ROUTE

admit or establish new State	Article 2
reorganise existing Indian unit	Article 3
acquire foreign territory	sovereign power; Article 1 can accommodate it
cede Indian territory	constitutional amendment under Article 368
settle uncertain boundary	no cession if agreement only identifies boundary

BERUBARI UNION (1960)

cession of Indian territory cannot be completed through Article 3 alone.

MAGANBHAI ISHWARBHAI PATEL (1969)

boundary settlement differs from cession.

100TH AMENDMENT, 2015

constitutional route used for India-Bangladesh land-boundary exchange.

ASCII MASTER FLOW - PANEL 4/12: First Schedule as a constitutional change ledger

TERRITORIAL LAW UNDER ARTICLE 2 OR 3

--- changes First Schedule: State and Union-territory description
--- may change Fourth Schedule: Rajya Sabha seat allocation
--- may include supplemental, incidental and consequential provisions

ARTICLE 4 DECLARATION

such law is not deemed an Article 368 amendment

ORDINARY LEGISLATIVE ROUTE

LIMIT

Article 4 supports territorial reorganisation;
it does not bypass Article 368 for unrelated constitutional changes.

ASCII MASTER FLOW - PANEL 5/12: Integration and linguistic reorganisation, 1947-1956

1947-49 accession and integration of princely states

1950 Part A, B, C and D classification begins

1948 Dhar Commission cautions against language-only reorganisation

1949 JVP Committee postpones linguistic reorganisation

DEC 1952 Potti Sriramulu's death intensifies Andhra demand

1 OCT 1953 Andhra State formed; Fazl Ali/SRC appointed in 1953

1955 Fazl Ali Commission report
1956 States Reorganisation Act + Seventh Amendment
+-- language accepted with unity, administration and economy
+-- Part classifications abolished
+-- States and Union territories reorganised

Language became accommodation's basis, not an automatic sole test.

ASCII MASTER FLOW - PANEL 6/12: Post-1956 map-making: reorganisation, creation and renaming
1956 SETTLEMENT

+-- 1960 Maharashtra + Gujarat
+-- 1963 Nagaland
+-- 1966 Haryana + Chandigarh; Punjab reorganised
+-- 1971 Himachal Pradesh
+-- 1972 Meghalaya, Manipur and Tripura
+-- 1975 Sikkim becomes a State
+-- 1987 Mizoram, Arunachal Pradesh and Goa
+-- 2000 Chhattisgarh, Uttarakhand and Jharkhand
+-- 2014 Telangana
+-- 2019 Jammu and Kashmir reorganised into two Union territories

RENAMING uses Article 3 when a State name changes.

CURRENT MAP IN SOURCE: 28 States and 8 Union territories.

CLOSE DISTINCTION: A State legislature supplies non-binding views under Article 3; Article 4 uses ordinary legislative procedure, while foreign cession requires Article 368 under Berubari Union (1960) and a mere boundary settlement may not.

ASCII MASTER FLOW - PANEL 7/12: Jammu and Kashmir reorganisation as an Article 3 stress test
2019 REORGANISATION -> J&K UT WITH LEGISLATURE + LADAKH UT WITHOUT LEGISLATURE

|
IN RE ARTICLE 370 (2023 INSC 1058)
+-- State legislature's Article 3 views are recommendatory
+-- carving Ladakh as a UT upheld under Article 3(a) + Explanation I
+-- whole-State-to-two-UT conversion question NOT finally decided
+-- J&K Statehood restoration directed at the earliest

|
STATUS CHECKED 7 SEP 2026
No operative J&K Statehood-restoration law or appointed-day notification located.

EXAM LIMIT: do not say the Court generally approved every State-to-UT conversion.

ASCII MASTER FLOW - PANEL 8/12: New-State demand: democratic claim versus viable federal unit
CLAIM FOR NEW STATE

identity + distance from capital + uneven development + administrative access

|
CONSTITUTIONAL RESPONSE
Article 3 reorganisation after required consultation

|
TESTS
+-- administrative viability
+-- fiscal and resource sustainability
+-- minority protection inside proposed unit
+-- water, capital, assets, debt and employees
+-- security and territorial integrity
+-- democratic legitimacy and transition costs

Smaller can improve access; it does not automatically produce capacity or equality.

ASCII MASTER FLOW - PANEL 9/12: Exact verified PYQ controls: wording, demand and answer ownership
2025 PRELIMS GS-I Q52

Arunachal Pradesh + Nagaland + Tripura pairs -> official key C: all three.
Nagaland: Statehood Act and accompanying Thirteenth Amendment are not mutually exclusive.

2018 MAINS GS-I Q12 | 15 MARKS | 250 WORDS
"Discuss whether formation of new states in recent times is beneficial or not for the economy of India."
Answer demand = economic benefit, capacity, fiscal viability and transition costs.

2022 MAINS GS-I Q11 | 15 MARKS | 250 WORDS
Political and administrative reorganization has been a continuous ongoing process since the mid-nineteenth century -> prove continuity with colonial + post-1947 examples.

ASCII MASTER FLOW - PANEL 10/12: Exact 10/15/20-mark architecture: flexible territory within an indestructible Union
10 MARKS / 150 WORDS
Article 1 thesis -> Articles 2/3 distinction -> Article 3 procedure -> one case -> verdict.

15 MARKS / 250 WORDS

Articles 1-4 + First/Fourth Schedules -> history -> case law -> federal balance -> graded verdict.

20 MARKS / 250 WORDS

Add chronology as argument, Explanation I State/UT nuance, exact J&K holding, criticism and reform.
Use validity -> legitimacy -> prudence; never substitute a current proposal for enacted law.

ANSWER CONTROL

Every model: evidence -> mechanism -> analysis -> limit -> verdict -> answer-specific improvement.

ASCII MASTER FLOW - PANEL 11/12: Qualified final synthesis: flexible map, protected sovereignty,
negotiated legitimacy

INTERNAL FLEXIBILITY

Articles 3-4 permit ordinary-law reorganisation after constitutionally required consultation.

+

SOVEREIGNTY LIMIT

Berubari Union (1960) excludes foreign cession; Article 368 supplies the constitutional route.

+

FEDERAL LEGITIMACY

State views are not a veto, but transparent consultation, viability and negotiated
transition matter.

+

CURRENT-LAW DISCIPLINE

28 States + 8 UTs; J&K remains a UT with Legislature on the 7 Sep 2026 check.

FINAL VERDICT

Article 3 is a centralising safety valve whose legitimacy depends on using flexibility as
constitutional accommodation, not as a substitute for federal trust.

ASCII MASTER FLOW - PANEL 12/12: Current territorial status and authoritative-source gate

CURRENT MAP, RECHECKED 7 SEP 2026 -> 28 STATES + 8 UNION TERRITORIES

J&K REORGANISATION ACT 2019 -> UT of J&K + UT of Ladakh

IN RE ARTICLE 370, 11 DEC 2023 -> 2019 measures upheld; early statehood restoration recorded

NO OPERATIVE RESTORATION NOTIFICATION LOCATED -> J&K remains a UT

SOURCE ORDER: Constitution -> India Code -> Supreme Court -> MHA -> textbook.

LEGAL/SOURCE LIMIT: State/UT counts, J&K status and reorganisation claims are date-sensitive:

use the Constitution, India Code, MHA and Supreme Court, and never turn an assurance to
restore statehood into an accomplished legal notification.